

VENDOR HANDBOOK

**COLORADO SPECIAL SUPPLEMENTAL NUTRITION PROGRAM
FOR WOMEN, INFANTS, AND CHILDREN (COWIC)**



EFFECTIVE OCTOBER 1, 2025 – SEPTEMBER 30, 2028



COLORADO
Department of Public
Health & Environment

Sponsored by:

U.S. Department of Agriculture (USDA)

Administered by:

Colorado WIC Program (COWIC)

Colorado Department of Public Health and Environment

Nutrition Services

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In Cooperation with:

Your Local WIC Agency

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SECTION I. INTRODUCTION TO WIC AND WIC SERVICES

A. OVERVIEW AND BENEFITS

The Special Supplemental Nutrition Program for Women, Infants and Children (WIC) is a federal grant program for which Congress authorizes a specific amount of funding each year to support Program operations. The U.S. Department of Agriculture Food and Nutrition Service (FNS) administers the Program at the federal level and provides these funds to WIC state agencies (i.e., state health departments or comparable agencies) to pay for WIC foods, services and administrative costs. Every month, WIC serves roughly 6.6 million mothers, babies, and young children up to age five who are at nutritional risk across the United States. The Colorado WIC Program (COWIC) serves approximately 90,000 participants each month with food benefits issued through an EBT system called eWIC.

The Colorado Department of Public Health and Environment (CDPHE) administers the WIC Program in Colorado. COWIC contracts with local agencies, which include county health departments and health or nursing services, to provide Program services throughout the state.

Through this statewide network of local agencies, nutritionists, nurses, and educators, COWIC and CDPHE work to promote the relationship between good nutrition and healthy development by efficient and accountable administration of the Program.

COWIC partners with various food vendors throughout the state of Colorado, including grocery stores, commissaries, farmers, and formula warehouses. Cashiers at participating stores assist WIC families to shop for and take home over **\$82 million** of healthy food a year in Colorado.

Cashiers are important partners in improving the health of Colorado communities. Thank you!

WIC has been proven to be an effective supplemental nutrition program that benefits Colorado families. For example:

- For over 50 years, WIC has contributed to healthier pregnancies and improved birth outcomes ensuring a healthier future for our communities. It has been a cornerstone in efforts to support the health of mothers, babies, and their families.
- WIC provides resources, knowledge, and tools to help support families. It is free for moms, dads, grandparents, foster parents, and all Colorado families who qualify.



B. WHO CAN RECEIVE WIC?

Many families in Colorado and across the country are eligible to participate in WIC. Eligibility is determined on the basis of income and other criteria described below. The Program does not ask or keep information about visa status or citizenship.

To be eligible for WIC services and benefits, an individual must meet all of the following criteria:

- Be an infant, child up to the age of five years or a pregnant, breastfeeding, or postpartum woman,
- Have an income which is equal to or less than 185% of the federal poverty guidelines, and
- Live in Colorado.

SECTION II. WIC FOODS

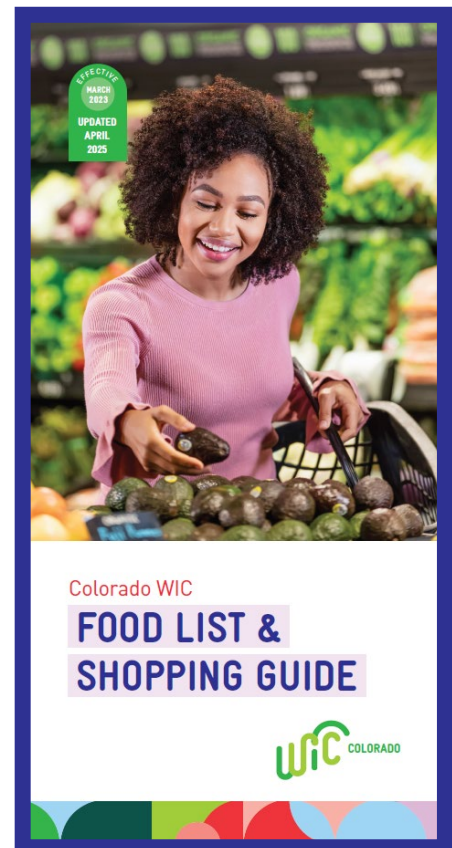
By providing nutritious foods, breastfeeding support, education about healthy eating habits, and referrals to health care and critical social services, WIC not only helps with healthy pregnancies and birth outcomes for women, it also helps to ensure healthy growth and development for infants and children up to age five.

Supplemental WIC foods must meet federal nutrient requirements, as outlined in 7 CFR Part 246 and contain established amounts of various nutrients, such as iron, calcium, protein, vitamins A, D, and C. WIC foods are specifically chosen and are designed to reduce complications of pregnancy due to poor nutrition and to promote the healthiest possible birth, growth, and development of children.

A. FOOD CATEGORIES

Alternative Nut and Seed Butter*	Infant Food-Fruits and Vegetables
Breakfast Cereal	Infant Food-Meats
Canned Beans	Infant Formula
Canned Fish	Juice
Cheese	Milk
Dried Beans/Peas/Lentils	Peanut Butter
Eggs	Plant-Based Milk Alternatives
Fruits and Vegetables	Tofu
Infant Cereal	Whole Grains

*Effective March 2026



B. FOOD LIST AND SHOPPING GUIDE

The specific brands, flavors, and sizes of allowable foods offered by COWIC are detailed in the Food List and Shopping Guide (Food List).

To use their monthly COWIC food benefits, families must shop for and buy their WIC foods at authorized vendors. These vendors are required to stock WIC items in specific varieties, flavors, and sizes to allow families the ability to obtain the most value from their food benefit.

COWIC releases an updated Food List and Shopping Guide every six months in March and September. These updates include new products and product changes on a rolling basis throughout the year and will be announced in a one-page document posted to the [COWIC website](#) and on the WIC Shopping app. The electronic version of the Food List will also be updated with any changes that are made.

Potential six-month updates include but are not limited to:

- New product flavors.
- Change to product name.
- Change to product front label/image.
- Brand or logo changes.
- Size additions or changes.

Note: Changes to the formulation or UPCs of approved products are reviewed and updated continuously.

A larger review of the Food List and Shopping Guide occurs every two to three years and may include bigger changes to food categories depending on federal policy and funding requirements.

COWIC recommends keeping a copy of the Food List at each register to assist store staff with understanding and helping customers using their eWIC card. Printed copies of the Food List and Shopping Guide in English and Spanish can be obtained by emailing cdphe_cowicstores@state.co.us, by visiting the COWIC website (www.ColoradoWIC.gov), or by submitting a Material Order Form (found on page 94 of this handbook). Food Lists in other languages are available to download and print at www.ColoradoWIC.gov/wic-foods-list.

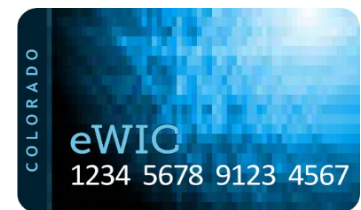
SECTION III. HOW WIC WORKS

A. AGREEMENT AND HANDBOOK

The partnership between WIC-authorized vendors and COWIC is an essential part of this successful nutrition program. Working together, vendors and COWIC ensure that WIC families receive the nutritious foods prescribed for them and ensure that stores receive the correct payment for the items purchased. This Colorado WIC Vendor Handbook (Handbook) sets forth the roles and responsibilities of vendors as well as the Program.

B. EWIC CARD

Participating families receive an eWIC card at their local clinic to take with them to the store when doing their shopping. The same card is used month after month and several months of food benefits may be issued to the family's account at a time. Benefits become available the first day of the month and expire at midnight of the last day of the month and do not roll over to the next month.



C. EWIC FOOD BALANCE

Clients receive an itemized food benefit list at their clinic appointment to use at the store. This WIC shopping list may include specific items, general food categories and/or a dollar amount:

- **Item:** Specific prescribed WIC food item and quantities to be purchased (for example, 5 cans of Enfamil Infant infant formula).
- **Food Category:** Set of options to choose at the store (for example, 1 unit of legumes—also referred to as 1 jar/bag/can of peanut butter/beans—means the customer can choose between 1 jar of peanut butter, 1 pound of dry beans or 4 cans of beans).
- **Dollar Amount:** Fixed-dollar amount available to a WIC customer to purchase fruits and/or vegetables.

In addition to the list they receive at the clinic, shoppers have several options to request and find their current eWIC balance:

- **At the store:** A balance inquiry can be printed at the register.
- **On the back of their eWIC card:** Shoppers can call the phone number or visit the web portal listed on the back of their card (pictured right) to inquire about their remaining balance.
- **On their smartphone:** The WIC Shopping app will show the shopper their current balance after they register their eWIC card.



D. PEER GROUPING

State WIC agencies follow federal regulations to use a vendor peer group system (i.e., grouping similar stores together) to determine competitive price criteria and allowable reimbursement levels to ensure that the Program pays authorized vendors competitive prices. Vendors are assigned a peer group based on store type, geographic area, and the number of WIC-authorized stores owned and operated in Colorado. Vendors are told of their peer group when they are authorized and are encouraged to email cdphe_cowicstores@state.co.us for more information.

E. COMMUNICATIONS

Grocers, farmers, pharmacies, and commissaries are encouraged to communicate with their COWIC contact (local and/or state) when they have questions, need assistance or have suggestions for improvement. Feedback from retail partners on reducing barriers and making the shopping experience the best it can be for store staff and client customers is always appreciated.

SECTION IV. MINIMUM STOCKING REQUIREMENTS

Authorized vendors are required to stock COWIC-approved items at all times in sufficient varieties and quantities to meet participant demand. Specific required varieties, brands and sizes for the following food categories are as defined in the current [COWIC Food List and Shopping Guide](#).

A.VARIETY OF STOCK—FOOD CATEGORIES

* Eligible for waiver— waivers must be pre-approved. See next page for details

Infant Formula*

- Milk-based Contract Formula (powder)
- Soy-based Contract Formula (powder)
 - For soy-based formula: only 2 or 4 quantities are required.

Recommended: Enfamil AR (12.9 ounce), Enfamil Reguline (12.4 ounce) and Enfamil Gentlease (12.4 ounce). We highly encourage vendors to carry the above formulas as they are popular and often bought by participants with those formulas issued on their food package.

Infant Food: Fruits and/or Vegetables*

Two Flavors

Infant Food: Meats*

One Flavor

Infant Cereal*

One Flavor

Whole Grains

Two Varieties

Bread and brown rice, tortillas or pasta.
(One must be 24 ounce bread)

Breakfast Cereal

Two Varieties

(One must be whole grain cereal)

Fresh, Frozen, or Canned Fruits

Three Varieties

Fresh, Frozen, or Canned Vegetables

Three Varieties

Peanut Butter or Canned and/or Dry Beans

One Variety

Peanut Butter 16 to 18 ounce

Canned or Dry Beans 15 to 16 ounce

Canned Fish

One Variety

Eggs

One Variety

Dozen

100% Juice: 64 ounce

One Flavor

Cheese

One Flavor

Block, Shredded, or String

16 ounce (One-Pound) Packages

Milk

Whole and 1% Low-fat/Skim

Gallon or Half Gallon

Dairy

One Variety

Shelf-stable, powdered, lactose-free, evaporated milk, goat's milk, plant-based milk alternative, buttermilk, or yogurt.

B. QUANTITY OF STOCK

Vendors with one to four cash registers must stock a minimum of four units (e.g., cans, packages, containers) within each food category box (on page 10). For example, these vendors must stock at least four packages of cheese, four boxes of cereal, four containers of fresh milk that include whole and 1% low-fat/skim (e.g., two gallons of whole and two half-gallons of 1%), four cans of milk-based contract brand formula (powder), four cans of soy-based contract brand formula (powder), etc. For produce, the minimums are four dollars of fresh, frozen, or canned fruits and four dollars of fresh, frozen, or canned vegetables. Variety requirements still apply.

Vendors with five or more cash registers must stock a minimum of eight food items within each food category box (on page 10). For example, these vendors must stock at least eight packages of cheese, eight boxes of cereal, eight containers of fresh milk that include whole and 1% low-fat/skim (e.g., three gallons of whole, three gallons of 1% and two half-gallons of 1%), eight cans of milk-based contract brand formula (powder), eight cans of soy-based contract brand formula (powder), etc. For produce, the minimums are: eight dollars of fresh, frozen, or canned fruits and eight dollars of fresh, frozen, or canned vegetables. Variety requirements still apply.

Category of Food	Quantity for Stores with One to Four Cash Registers	Quantity for Stores with Five or More Cash Registers
Infant Formula	4 cans milk-based 2 cans soy-based	8 cans milk-based 4 cans soy-based
Infant Cereal	4 packages	8 packages
Fresh, Frozen, or Canned Vegetables	\$4 worth	\$8 worth
Fresh, Frozen, or Canned Fruits	\$4 worth	\$8 worth
Cheese	4 packages	8 packages
Cereal	4 boxes	8 boxes
Milk	4 containers whole and 1%/skim	8 containers whole and 1%/skim

***Note:** this is not a full stock list. All food categories listed on page 10 need to be stocked to maintain WIC authorization.

PLEASE NOTE: Formula or food items that are found to be out of date (i.e., past the “use by” date) will not be counted as inventory in surveys of minimum stocking and will be subject to sanction.

If the store’s infant formula is kept at a customer service desk, there must be a sign on the shelf where it would otherwise be located that directs customers to the service desk. As always, WIC customers must be treated the same as all other customers.

What if a store fails to maintain the required stocking requirements?

Failure to meet stocking requirements leads to sanctions and/or agreement termination.

What exemptions are there for authorization and throughout the agreement?

- Farmers and pharmacies are exempt from minimum food stocking requirements listed in this section. The Farmer Handbook, Farmer Agreement and the Pharmacy/Home Delivery Contractor Agreement specify their requirements, respectively.
- WIC authorized pharmacies are not required to maintain minimum stock. However, you must demonstrate the ability to order formulas in a timely manner and must order special infant formulas and liquid nutritional/ medical products within a reasonable time when requested by an eWIC cardholder.

Can a store apply for a waiver of the minimum stocking requirements?

Infant Category: Vendors may request a stocking waiver (Minimum Stocking Waiver Form, Exhibit D) from stocking one or more infant categories (i.e., milk-based formula, soy-based formula, infant cereal, infant meats and/or infant fruits and vegetables). COWIC shall consider granting a waiver in the following situations:

- There has been no documented WIC sale of the item(s) at the store within the last three months or local WIC staff confirm that there are no WIC families currently being issued the item(s) or expected to request the item(s) of the vendor, and
- The vendor guarantees that upon request by a participant or state or local WIC staff, the item will be made available within 24-72 hours at which time the waiver will be suspended. The state and/or local WIC staff will work with the vendor to determine the appropriate timeline for the reactivation of the waiver.
- Waivers are good until the next agreement period at which time the need to have a waiver will be reassessed during their next scheduled retailer routine monitoring visit.
- During a retailer routine monitoring visit, if a store is found to not meet minimum stocking requirements for waiver-eligible items, and does not currently have a waiver in place, no violation points will be issued if a waiver is appropriate and will be completed.
- Corporate/Large chain stores are not eligible for minimum stocking waive.

SECTION V. EWIC PURCHASES

A. EWIC: BASICS

The monthly [food package](#) prescription (i.e., food types and amounts) received by each WIC participant is determined based on the individual's specific nutritional and developmental needs and loaded via electronic benefit transfer to a form of tender called an eWIC card. The participant or another authorized user can use the eWIC card at an authorized grocery store, pharmacy, commissary, or farmer to do their shopping.

In a typical eWIC transaction, when an order is rung up and the eWIC card is swiped, the store's cash register (Point-of-Sale or POS) system is connected to the account that holds the families' food benefits and compares the items in the account with the items being purchased. Items that are on the account balance and listed on the Approved Product List (APL) are approved for purchase by the card processor. The APL is a list of the thousands of COWIC approved foods and barcode/UPC and PLU numbers. The APL file is sent nightly to the store's POS. Vendors must provide customers the option to use other forms of payment (such as cash, personal check, credit, SNAP, gift cards, or other tender) to pay for any remaining balance of non-WIC items to have the item(s) voided.

Vendors agree to use an approved POS that is certified for eWIC transactions as a condition of COWIC authorization. More details can be found in Section X.

For more information regarding eWIC, please visit our website at www.ColoradoWIC.gov/about/ewic.

B. EWIC: STEPS

Purchases and receipts for eWIC transactions may look and work differently depending on the POS. Most stores integrate eWIC purchases into the cash register system but may use a special piece of equipment that is called a "stand-beside" POS device.



The main steps in an eWIC purchase are similar regardless of the POS, including:

- **List of Items:** An Approved Product List (APL) of the thousands of COWIC approved foods and barcode/UPC numbers is sent nightly to the store's POS.
- **Swipe:** At check out, the shopper swipes their eWIC card before entering other forms of payment and enters their PIN.
- **Verification Process:** The card processor verifies:
 1. Card number and PIN.
 2. Each UPC/barcode to see if items (e.g., size and brand) are WIC-approved items.
 3. Shopper's food balance to see if the items are assigned and available for the month.

4. Allowed price (may adjust to the approved amount).
 5. Shopper approval (gives the shopper a chance to approve or disapprove the amount charged to the eWIC card).
- **Easy:** Cashiers do not confirm the name or signature of the shopper nor the dates or foods in the shopper's balance. The POS will approve items to be paid for with eWIC and request another form of payment for any non-approved items being purchased.
 - **No Overrides:** Cashiers are not able to override an item for eWIC. Cashiers must offer the shopper the option to void or pay for items that were not approved for payment by eWIC. Note: Please submit item details to COWIC for review if there appears to be an error in what is approved.
 - **Receipts:** The cashier gives the shopper the receipt. The purchase receipt gives the shopper the list of WIC items purchased, the eWIC amount purchased and the foods left in their balance.

C. TROUBLESHOOTING: NOT RINGING UP

If an item does not ring up for eWIC payment as expected, the cashier must ask the shopper if they would like to pay for the item or have it voided. A very helpful step is for the cashier to know and explain why the item did not go through as WIC (e.g., not WIC approved, not in the food balance) and assist the shopper with finding an approved food.

D. TROUBLESHOOTING: PIN

To make an eWIC purchase, the shopper must have an eWIC card and a PIN. Cashiers may manually enter the card number if they find the eWIC card cannot be read by their POS system. Under no circumstances can the 16-digit card number, or PAN, be manually entered without the eWIC cardholder presenting the actual eWIC card. If the card is not available, cashiers should suggest that the eWIC cardholder contact their WIC clinic so that the eWIC card can be replaced.

If the shopper does not have a PIN set up, they may call the phone number on the back of the card or visit ebtedge.com to do so. COWIC clients may also call this number to change their PIN, report a lost or stolen card, or check their account balance. Accounts are locked until midnight that day after the wrong PIN is entered four times. If a shopper enters the wrong PIN three times, suggest that they call the customer service number on the back of the card to change their PIN to avoid being locked out of their account until the next day.

Participants may sometimes send someone else to buy their COWIC foods for them. Anyone with the eWIC card and PIN may purchase the foods associated with the account. Cashiers should not check alternate forms of identification for a WIC purchase or ask the shopper for the PIN. As always, WIC customers should be treated the same as any other customer.

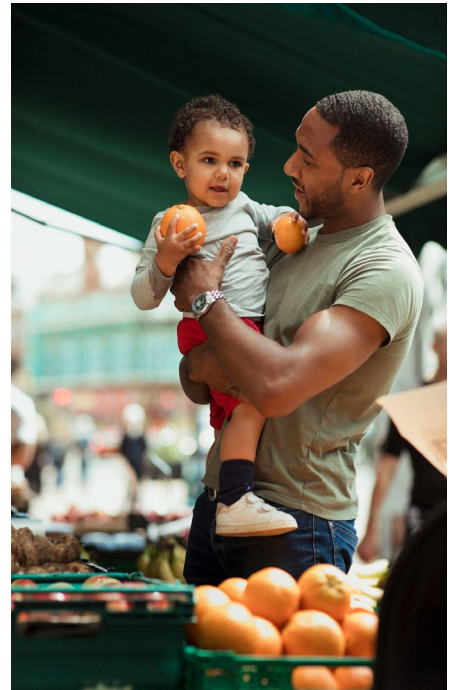
E. TROUBLESHOOTING: APL MISSING A FOOD

COWIC keeps a list of each of the thousands of specific food items that can be purchased through WIC called the APL. This list is sent to stores whenever it changes and new foods are added. If a food item appears to be missing from the APL, please send the product details in one of the following ways:

- Email cdphe_cowicstores@state.co.us with a picture of the label name and barcode/UPC.
- Text a picture of the label name and barcode/UPC to: (720) 630-3391.
- Report the barcode/UPC and item details to the store manager or chain representative.
- Ask the shopper to provide details and/or pictures of the label and barcode to their local COWIC clinic.

F. OVER-THE-MAXIMUM DOLLAR AMOUNT

Vendors are paid the approved price for each eWIC item which is the average price charged by the item by the store's peer group. Vendors that exceed pricing limits are subject to reductions to their claims prior to payment, at time of payment, and through subsequent recoupment after payment. Vendors are encouraged to email cdphe_cowicstores@state.co.us with questions or issues.



SECTION VI. VENDOR ROLE AND RESPONSIBILITIES

A. INITIAL WIC AND ONGOING SUCCESS TRAINING

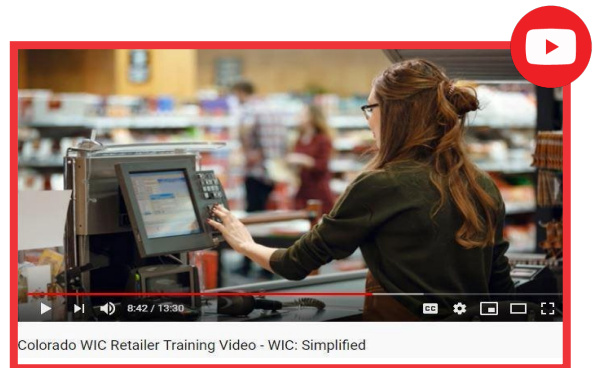
WIC training ensures that cashiers (including store staff that deal with WIC foods or purchases) are prepared for WIC shoppers and are comfortable and proficient with WIC purchases. This investment in training makes for a better experience for everyone.

Below are the main ways that store managers and trainers first initially prepare cashiers and other store staff for WIC shoppers and then build success, proficiency, and expertise on an on-going basis.

INITIAL WIC TRAINING: BEFORE AUTHORIZATION AND NEW HIRE

Store managers are responsible to ensure that cashiers are provided with WIC training, are prepared to successfully put through WIC purchases and that the training is documented. WIC training needs to be provided to cashiers when the store is initially authorized and as cashiers (and other staff that work with WIC) are hired. This initial preparation training should include, but is not limited to:

- Viewing the latest WIC vendor training video.
- Reviewing how to use the most recent COWIC Food List.
- Practicing the steps in a WIC purchase on the store's cash register system, including how to void an item not ringing up as expected.
- Learning how to troubleshoot WIC purchases using the Food List and shopper's receipt.
- Having the opportunity to ask and get answers to questions and share expertise.



After the training, cashiers should know the benefits of WIC and how to use the Food List and the customer's receipt to find approved and non-approved foods. They should be aware of WIC violations and available resources. They should be proficient and comfortable ringing up and troubleshooting a WIC purchase at the register, including offering shoppers the options to pay for or voiding items ringing up differently than expected. (Please see Training Tools listed on page 18.)

ONGOING SUCCESS TRAINING: PERIODICALLY

COWIC sends newsletters, updated procedures, revised Food List, and other tools to vendors throughout the three-year agreement period. Cashiers need the latest information in order to be proficient and confident in their role in successfully ringing up WIC transactions. Vendors must have processes in place to routinely disseminate updated WIC information to store staff.

COWIC will require that vendors not only conduct but also document this success training (i.e., Required Interactive Training). Instructions from COWIC will be provided on the timelines, documentation process and other specifics if required. Unless pre-approved, documentation of WIC training should be kept in the WIC manual.

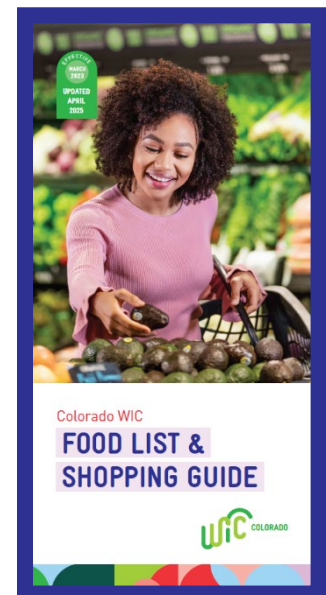
TRAINING APPROVAL AND DOCUMENTATION

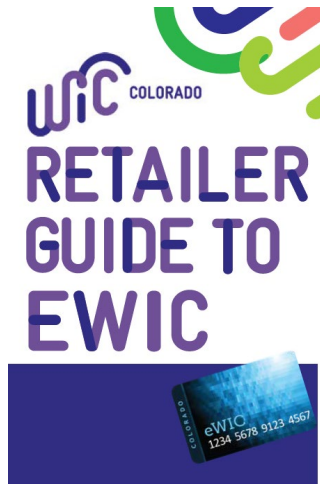
A vendor may submit their internal WIC training program (i.e., curriculum and tracking process used in-house) to COWIC to be reviewed for approval. Approval is effective until the end of the agreement period (unless withdrawn) and can be renewed. Upon WIC approval, a vendor's internal training may be used to provide initial training and some ongoing training to cashiers. As updates occur, vendors agree to incorporate the most recent versions of WIC materials, policies and information into their approved training program.

Training tools are available from COWIC in conducting training and in the development of internal training. A training facilitation guide and post-tests and answer key are provided in the Exhibit section of this Handbook for your convenience and use.

B. TRAINING TOOLS

- **Your store's cash register/point-of-sale (POS):** For a cashier new to WIC purchases, there is no substitute for practice time at a cash register to learn how a WIC purchase works and how to troubleshoot.
- **COWIC Food List:** Updated electronically every 6 months (every March, September) and a new printed version every 2-3 years. Cashiers must be retrained on updated Food Lists and be informed of the main changes. A group setting is suggested to give cashiers a chance to ask questions and learn from each other.
- **WIC Training Video (WIC: Simplified):** Typically revised every 3-4 years, cashiers and any store staff involved with WIC transactions should view the newest version of the video upon new hire and as revisions are produced. The video is available on www.ColoradoWIC.gov/resources/trainings/retailer-training and YouTube as well as on CD and DVD (upon request).
- **WIC'S WORLD Newsletter: WIC'S WORLD** is sent out to vendors annually. It is typically in the form of an email newsletter. It provides information about food and policy changes, answers to common questions and related information. Cashiers and store staff working with eWIC should be given the opportunity to review the newsletter. For example, the newsletter might be placed on a bulletin board or the store trainer might pick out important points in the newsletter and share the tips at a routine meeting, etc.
- **Interactive Training:** Every three years, at least one representative from each vendor is required to attend an interactive training session. The COWIC Benefit Delivery Unit (see Definitions for additional information and role of the unit) will send information to store representatives with the training date(s) and time(s) and instructions on how to access the training. This training will cover the purpose of the WIC Program, approved foods, minimum stock requirements, requirement to purchase infant formula from the approved list, procedures for transacting and redeeming eWIC benefits, Program violations and sanctions, the complaint process, claims procedure, incentive items policy, and changes to Program requirements since the last training. Vendors who fail to attend interactive training may be sanctioned including termination of the vendor agreement.





- **WIC Local Contact (LARC):** Your store is assigned a Local Agency Vendor Coordinator, called a LARC, who acts as a liaison to your store from the local COWIC clinic. The LARC will visit your store at initial authorization and will periodically connect throughout calls and/or visits. Your LARC is a great resource to stay up to date with Program changes and requirements.
- **Retailer Guide to eWIC:** This optional guide is available for use at your store's training sessions. This short guide provides a quick reference for commonly asked questions. Copies can be kept available at every register.
- **Cashier Training Facilitation Guide:** A training facilitation guide is provided in the Exhibit section of this Handbook for your convenience and use. The guides offer main objectives and step-by-step guidelines on conducting the training sessions.
- **Training Posttest:** A posttest is an optional training tool. A post-test and answer key are provided in the Exhibit section of this Handbook for your convenience and use. Vendors may use this test in conjunction with training sessions to confirm that employees are aware of WIC policies and procedures. Vendors are responsible for making copies of the posttest and answer key as needed. Completed tests are not required to be sent to COWIC.

Many of these tools are available for order on the Materials Order Form, on www.ColoradoWIC.gov or through contacting COWIC. While vendors are responsible for appropriate translation of WIC materials for their staff, COWIC may be able to provide translation support on select items. Please contact COWIC for more information on translation or to order the tools.

C. RETAILER ROUTINE MONITORING VISITS BY COWIC

At least once during each three-year agreement period, COWIC provides (and requires attendance of a store representative at) an interactive retailer routine monitoring session. These are typically in the form of a 60-minute visit from the LARC to the store to provide an opportunity for the store representatives to ask questions and share input, to ensure compliance and completion of staff training, and to provide assistance. Stores that are identified as having specific or consistent issues and/or significant violations will be notified and required to attend a mandatory training session conducted by COWIC.

D. VENDOR AGREEMENT

The Colorado WIC Vendor Agreement (Vendor Agreement) defines the roles and responsibilities of vendors. By reference this Handbook is made part of the Vendor Agreement, and the policies and procedures outlined in this Handbook are an integral part of the Vendor Agreement. The Vendor Agreement, Vendor Handbook, federal regulations, and policy letters outline policies and procedures that must be met by authorized vendors. COWIC may terminate the Vendor Agreement by providing 15 days advance written notice. The vendor may terminate the Vendor Agreement by providing 30 days advance written notice. The parties shall not be released from the duty to perform their obligation up to the date of termination. Neither COWIC nor the vendor has an obligation to renew the agreement.

E. COWIC MANUAL

Upon initial authorization, vendors can be sent a WIC Manual (i.e., a white binder to be used for maintaining important materials and documents). Keep this Handbook and any correspondence, newsletters and policy letters received from COWIC in the Manual. Stores are permitted to keep the WIC Manual in an **electronic format** rather than maintaining a printed copy. Use the Training Documentation Form (Exhibit A) to record store training and keep the completed form in your Manual.

F. POLICY LETTERS

Clarifications, changes and/or additions to federal or state WIC policies and procedures may be made throughout the agreement period. These changes will be transmitted to vendors through policy letters. Vendors will be notified prior to the implementation of the policy. Vendors should maintain printed or electronic copies of policy letters.

G. DISTRIBUTION AND ORDERING OF MATERIALS

In cases where multiple stores are covered under one Vendor Agreement (e.g., chain stores), the vendor is responsible for distribution of policy and training materials. A Materials Order Form is available at the back of this Handbook to assist in ordering COWIC materials.

H. WIC LOGO/ACRONYM

Use of acronym "WIC" and WIC logo, in total or in part, is reserved for official use of the Program. See Definitions and Details for more information.

I. TAX EXEMPT

No sales or use tax of any statutory or home rule city, town or county shall apply to the sale of food purchased with funds provided by WIC.

J. RAIN CHECKS PROHIBITED

The issuance of rain checks for WIC foods is prohibited. Vendors that charge for WIC supplemental food not received by the WIC shopper are subject to a three-year disqualification from Colorado WIC.

K. COUPONS, BUY-ONE-GET-ONE-FREE OFFERS AND SALE ITEMS

WIC shoppers must be provided the same discount opportunities as other shoppers, including the following:

- Coupons, manufacturers' coupons and store discount cards.
- Buy-One-Get-One-Free. (The items purchased using eWIC must be COWIC-approved — the promotional items (free items) do not have to be COWIC approved.)
- Sale Items. (If there is a sale price on a WIC item, then the eWIC card is charged the sale price.)

L. EXCHANGES AND RECALLS

The vendor may not provide refunds or permit exchanges for approved foods obtained with WIC benefits, except for exchanges of an identical approved food item when the original approved food item is defective, spoiled, is being recalled, or has exceeded its “sell by,” “best if used by,” or other date limiting the sale or use of the food item. An identical approved food item means the exact brand and size as the original approved food item obtained and returned by the shopper. In the case of a recalled item, the manufacturer or FDA instructions for return/recall should be followed. Information is available at www.fda.gov, or by calling

1-888-INFO-FDA (1-888-463-6332). Some recalls will be addressed on a case by case basis.

M. SUBSTITUTIONS

COWIC foods are selected to be healthy, nutritious additions to family diets. The vendor may not provide unapproved food items, non-food items, cash or credit (including rain checks) in exchange for eWIC cards or WIC Program benefits.



N. NON-DISCRIMINATION

Stores must offer WIC shoppers the same courtesy as offered to other customers. Any practice that singles out WIC shoppers from other customers is prohibited. Such practices include:

- Having separate store hours for WIC shoppers.
- Keeping lists of participants.
- Having WIC shoppers sign cash register receipts.
- Keeping folders for each participant.
- Keeping WIC shoppers' purchase receipts.
- Offering or denying incentives solely to WIC participants (based on 7 CFR 246.12(h)(3)(iii) and WIC Policy Memorandum 2012-3, Vendor Incentive Items).
- In accordance with federal law and policy, COWIC and authorized vendors are prohibited from discriminating on the basis of race, color, national origin, sex, age or disability.

O. SHELF TAGS

Vendors may use shelf tags (i.e., shelf labels, flags, talkers, channel strips or clings) indicating an item is COWIC eligible under the following conditions throughout the agreement period:

- Chain stores - All locations in Colorado need to use WIC shelf tags if a chain company decides to use WIC shelf tags.
- The tags must be placed at the exact spot(s) that contain the WIC approved item(s) indicated.
- The vendor shall be responsible that food items tagged are COWIC-approved.

- Vendors are responsible for the placement of shelf tags.
- Vendors who wish to develop and use shelf tags must obtain written permission from COWIC by submitting a copy or sample of the final version for approval prior to use. WIC tags/labels are not permitted to be put on individual item containers; labels created by manufacturers stating WIC approval are not permitted.
- Vendors can decide which food categories in the store to use the shelf tags. For instance, a vendor may find that the bread category would benefit from shelf tags, but the cheese category would not.
- Shelf tag/labels need to be corrected within 2 weeks of being notified of an error.

P. PRODUCE MAPPING

Produce mapping is a critical component of WIC transactions and is a requirement of all Colorado WIC approved vendors. When done correctly, mapping can reduce frustration and confusion for customers and cashiers, and increase fruit and vegetable sales. Per the Vendor Agreement with Colorado WIC (see page 69), vendors are required to map all COWIC-approved fresh fruits and vegetables in their store. Failure to map all COWIC-approved fresh fruits and vegetables can result in noncompliance points during a monitoring visit or compliance investigation.

Mapping is a relatively easy process that makes fresh produce items immediately available for sale to WIC customers. It may be used with UPCs, retailer assigned UPCs, and Global Trade Item Numbers (GTIN). Mapping can be done at the store level. Mapping is done through the store's POS, not by the COWIC Program. Contact your register system provider with any questions about the mapping process.

UPCs for produce change frequently, so mapping must be done continually. Mapping links the UPC of an approved fresh fruit or vegetable to an existing produce PLU that is in the APL. For example, a UPC for blueberries that is not in the APL could be mapped to PLU 4240 for blueberries. When the UPC is scanned at the cash register, the WIC system would recognize it as PLU 4240, which is allowed in the APL. Mapping fresh produce items to a PLU for the same fresh produce item is preferred. However, if there is not a known PLU for the produce item, partial mapping to the generic PLU 4469 is allowed.

It is the store's responsibility to:

- Map all available produce.
 - Contact COWIC or your POS provider with any questions.
- Plan store procedures for mapping.
 - Who does the mapping at your store?
 - What is the process to map appropriate produce?
 - Do all staff know the communication process for reporting mapping needs?

- For example, this could include asking cashiers to take a picture of the item and the UPC (as applicable, such as a container of strawberries) and any other information to pass on that would be helpful for mapping.
- Train cashiers so they know what to do if a produce item doesn't go through on an eWIC transaction.
 - All cashiers should know how to troubleshoot an eWIC transaction.
 - All cashiers should know how to get a produce item mapped - what details to collect and who to give the information to.

If you require assistance or have any questions about COWIC approved PLUs, please contact cdphe_cowicstores@state.co.us.

Q. REPORTING ABUSE OF WIC PROGRAM BENEFITS

Vendors should contact their designated LARC with questions or to resolve initial problems. The LARC is the first point of contact for the stores and will work with individual stores to provide participant follow up when needed. Reports of abuse and/or complaints should be made immediately, if possible no later than three days after the incident. Specific information, including such particulars as the shopper's name, time and date, assists COWIC in researching and resolving the incident.

It is okay to ask whether or not a customer is participating in WIC. However, it is the customer's option to disclose and it must remain a voluntary disclosure on the part of the participant.

COWIC cannot release the status of the shopper's involvement in the Program to the vendor as this is confidential information. COWIC will follow up with anyone determined to be a participant and apply sanctioning procedures as appropriate.

In the rare case you encounter a shopper using eWIC who is rude or that you suspect is misusing WIC benefits, please report this to COWIC or the store's LARC. Examples to report include:

- Return of items purchased with eWIC.
- Verbal or physical abuse.
- Attempts to obtain cash or credit in an eWIC transaction (e.g., returning to the store with a discount card after the transaction is complete).

Buying, selling or otherwise misusing WIC benefits is a crime. To report suspected abuse, please call 800-424-9121, visit www.usda.gov/oig/hotline.htm or email COWIC at cdphe_askwic@state.co.us.

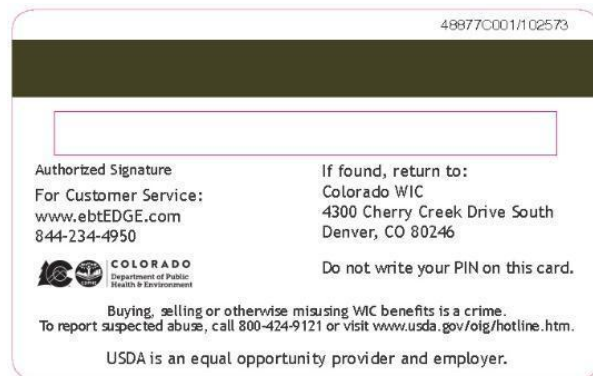
R. PREVENTING RETURNS

Several methods may be applied by the vendor to help combat the attempted return of WIC foods, some include:

- A store policy can be established requiring all customers to sign when returning infant formula. This allows the vendor a consistent method for acquiring the individual's name for reporting to the LARC for follow up of possible abuse. As always, this must be required of all customers, not just WIC customers.
- A store policy can be established requiring a cash register receipt for all customers attempting to return infant formula for cash. eWIC purchases are generally easily identified, as no sales tax would be included on the receipt.
- At the time of WIC transaction, the cashier could draw a line through the barcode on all cans of infant formula to denote a WIC purchase. As always, this must be done for all customers, not just WIC customers.

S. LOST/FOUND EWIC CARDS

If an eWIC card is found, please return to COWIC immediately as instructed on the back of the card (pictured below). If a customer loses an eWIC card, please instruct them to call their local clinic to report their card missing and request replacement.



T. PRICES AND PRICE LISTS

Shelf prices submitted at time of application must be competitive with other vendors in the proposed peer grouping (i.e., like stores in the same geographical type area, etc.) within 3 standard deviations of the peer group's mean market basket price for the top 10 most redeemed food categories. After authorization, store prices must remain competitive with other vendors in the peer grouping at the UPC level (within 3 standard deviations or 120% if there are not sufficient redemptions of that item). COWIC also evaluates vendor prices throughout the agreement period. If a vendor's prices are not competitive, one request will be made to the vendor asking for resubmission and/or justification of their pricing. If the vendor pricing remains ineligible for authorization based on the selection criteria listed in Section X, the authorized vendor will be sanctioned up to and including termination. Prices are confirmed through store visits and/or redemption data.

Grocery stores and commissaries must clearly mark the prices on the product or shelf at all times.

SECTION VII. WIC RESPONSIBILITIES

A. ROLES OF STATE AND LOCAL WIC STAFF

WIC operates on two levels in Colorado: a) the state level (referred to as COWIC), where a vendor coordination team is responsible for overall WIC vendor coordination, and b) the local level where a network of LARC located throughout Colorado conducts the day-to-day COWIC vendor management. Both levels are committed to providing vendors with a high degree of customer service.

B. MONITORING VISITS

Vendors are monitored by WIC to:

- Identify ways COWIC can assist the store.
- Give store staff the opportunity to provide input and ask questions.
- Review the COWIC manual and WIC training documentation.
- Share the benefits and nutritional goals of COWIC.
- Review the COWIC Food List, why specific foods are prescribed and the minimum stocking requirements.
- Review COWIC transactions and COWIC procedures.
- Review Program goals, policies, procedures and sanctions.
- Discuss any problems/concerns.
- Identify and document any observations (i.e., issues that indicate operational deficiencies that do not rise to the same level as a finding of violation) and set a mutually agreed upon plan and due date for correction.
- Identify and document noncompliance points and/or sanctions for findings of noncompliance as outlined in Section VIII of this Handbook. Set a due date for correction. Vendors may be required to provide a Corrective Action Plan (CAP) within 30 days of notification of noncompliance.



The vendor must provide at least one representative to meet with state, federal or local agency representatives to complete the monitoring visit. This representative is responsible for ensuring that all personnel involved with WIC transactions are trained. This representative must have legal authority to act on behalf of the store, for example signing a corrective action if required at the time of the monitoring visit. The visit may include an education buy (i.e., COWIC representative conducts a WIC transaction).

COWIC suggests that the store manager be available for at least a portion of the monitoring visit and discuss any findings. The store management may designate an appropriate individual to act as the store's representative during the visit.

C. SITE VISITS AND EDUCATION BUYS

Periodically, COWIC and/or a LARC conduct site visits to a store in coordination with a store manager/representative. The store manager or store representative is typically aware of the visit beforehand (and sometimes has requested the visit). These visits are a way of mitigating issues as well as identifying ways to enhance the partnership. The site visit may include an educational buy where the WIC representative conducts a WIC transaction to see first-hand how the store's POS and COWIC processes work.

D. INVESTIGATIONS

An investigation is a method required by the USDA and used by COWIC to determine if a pattern of Program violations are occurring. Stores are selected as candidates to receive an investigation based on past COWIC compliance, reported issues and vendor management and redemption data. They may also be selected as part of a random sample.

An investigation may include an administrative review, covert compliance buys, monitoring or site visit, inventory audit and/or coordinated efforts with the Supplemental Nutrition Assistance Program (SNAP) to determine fraud. A violation is an infraction of a Program policy or procedure, the federal regulations as outlined in 7 CFR Part 246, the COWIC Vendor Agreement and/or COWIC Handbook. Multiple violations detected during a single investigation may result in either a disqualification for the most serious violations or multiple Civil Money Penalties (CMP). The length of the disqualification period that is imposed for violations investigated as part of a single investigation may not exceed the disqualification period corresponding to the most serious violation.

COMPLIANCE INVESTIGATION

COWIC conducts and/or contracts for compliance investigations to identify and document violations, including those requiring federally mandated sanctions.

Compliance investigations may be closed when an inventory audit is complete, or when two or more compliance buys have been conducted in which no vendor violations are found, or when three or more compliance buys have been conducted to collect evidence of vendor noncompliance. Within 120 days of the close of a compliance investigation COWIC shall provide a findings letter to the vendor with identified findings and any corrective action needed.

INVOICE AUDIT

An inventory audit is an examination of food purchase invoices or other proof of purchase by the vendor to determine whether the vendor has purchased sufficient quantities of foods and/or formula to provide WIC shoppers the quantities specified as redeemed by the vendor during a given period of time.

Up to 12 months of the most current purchase invoices may be requested from the vendor for analysis. The vendor shall be given a specific timeline (generally 14 to 30 days) to submit purchase invoices to COWIC. The vendor's failure to supply purchase invoices to COWIC within the timeline period shall result in sanctions and/or noncompliance points.

Acceptable purchase records or invoices shall legibly and clearly reflect the following:

- Name and address of the supplier or wholesaler;
- Name and address of the purchaser (if receipt is from wholesaler);
- Date of purchase, including month, day and year;
- List of the items purchased including size, stock number (if available), UPC, quantity and unit price;
- Method of payment, and
- Sales receipts for WIC approved foods purchased at retail grocer (for resale by the Vendor) must include the name and address of the store, date of purchase, description of the exact items purchased (e.g., 14 ounces Cheerios), the unit price of the items and total quantity purchased.

Affidavits, statements of fact nor oral statements shall be accepted as evidence of inventory. Only purchase invoices shall constitute acceptable evidence of inventory. If acceptable purchase invoices do not support amounts paid to the vendor for WIC claims submitted to COWIC, the Program shall recover monies overpaid to the vendor.

SECTION VIII. VIOLATIONS, SANCTIONS AND CORRECTIVE ACTIONS

COWIC has systems to detect vendors who abuse or defraud the Program. These systems identify vendors who, through misinformation or lack of training, may intentionally or unintentionally violate federal regulations, Program policies and procedures, or terms of the COWIC Vendor Agreement. In accordance with federal regulations, vendors are accountable for actions of their employees in acceptance of eWIC cards within their store. Violations that trigger sanctions do not require the Program to distinguish between fraudulent (intentional) and abusive (unintentional) violations as both types of violations result in loss of Program funds.

The Program shall determine the type and level of action to be applied against vendors based upon the severity, nature and pattern of the Program violations observed and other factors as appropriate (for example: whether the offenses represented vendor policy or whether they represent the actions of an individual employee who did not understand the Program rules). The objectives of the Program can best be met through education, training and the voluntary cooperation of vendors, participants and the state and local WIC Programs.

To ensure the integrity of the Program it is necessary to impose corrective actions and sanctions consistently against vendors who are noncompliant or in violation of federal regulations and Program policies and procedures. There are several types of actions that may be applied:

- Nonpayment (or required return) of WIC funds.
- Warning/notification letter.
- Corrective Action Plan (CAP) (due within two weeks of finding).
- Mandatory training (must be completed within 30 days of finding).
- Civil Money Penalty (CMP) sanction; may be imposed if the Program determines disqualification would result in inadequate participant access.
- Disqualification sanction.

ADMINISTRATIVE REVIEW PROCEDURES FOR VENDOR APPEALS:

Appeals outlined in Exhibit G.

A. VENDOR FRAUD/ABUSE

A vendor who commits fraud or abuse of the Program is liable to prosecution under applicable federal, state or local laws. Vendors who have willfully misapplied, stolen or fraudulently obtained Program funds shall be subject to a fine of not more than \$25,000 or imprisonment for not more than five years, or both, if the value of the funds is \$100 or more. If the value is less than \$100, the penalties are a fine of not more than \$1,000 or imprisonment for not more than one year or both.

B. FEDERAL VIOLATIONS, SANCTIONS AND DISQUALIFICATION

Mandatory federal sanctions are defined in [7 CFR Part 246.12](#). These sanctions are in response to flagrant violations (also referred to as Class A violations) of Program policies.

- The Program will provide notification to the vendor upon a first incidence of a violation where a pattern of that violation may result in a sanction, unless the Program determines at its discretion that providing such notification may interfere with its investigation.
- A pattern of violations does not need to be present when applying a permanent disqualification.
- Those violations identified as requiring a pattern are assigned sanctions based upon at least three independent documented violations during any compliance buy investigation. When conducting inventory audits, a pattern can be established during a single review of the vendor's redemption records and depends on the magnitude of shortfalls and the period of time over which they occur.
- Those Class A violations identified as requiring a pattern will be sanctioned as follows for the same finding(s) committed within two years from the date of the receipt of the first violation notice:

MANDATORY SANCTION #1: PERMANENT DISQUALIFICATION FROM THE WIC PROGRAM

- a) Convicted of trafficking in WIC food instruments or selling firearms, ammunition, explosives or controlled substances (as defined in section 102 of the Controlled Substances Act [21 U.S.C. 802]) in exchange for WIC food instruments.
- b) Permanent disqualification from SNAP.

MANDATORY SANCTION #2: SIX (6) YEAR DISQUALIFICATION FROM THE WIC PROGRAM

- a) One incidence of buying or selling WIC food instruments for cash (trafficking).
- b) One incidence of selling firearms, ammunition, explosives or controlled substances as defined in 21 U.S.C. 802, in exchange for WIC food instruments.

MANDATORY SANCTION #3: THREE (3) YEAR DISQUALIFICATION FROM THE WIC PROGRAM

- a) One incidence of the sale of alcohol or alcoholic beverages or tobacco products in exchange for WIC food instruments.
- b) A pattern of claiming reimbursement for sale of an amount of a specific supplemental food item which exceeds the store's documented inventory of that supplemental food item for a specific period of time.
- c) A pattern of vendor overcharges.
- d) A pattern of receiving, transacting, and/or redeeming WIC benefits outside of authorized channels, including the use of an unauthorized vendor and/or an unauthorized person.
- e) A pattern of charging for supplemental food not received by the participant.

- f) A pattern of providing credit or non-food items, other than alcohol, alcoholic beverages, tobacco products, cash, firearms, ammunition, explosives or controlled substances as defined in 21 U.S.C. 802, in exchange for WIC food instruments.

MANDATORY SANCTION #4: ONE (1) YEAR DISQUALIFICATION FROM THE WIC PROGRAM

A pattern of providing unapproved food items in exchange for WIC benefits, including charging for WIC-approved foods provided in excess of the available balance.

SECOND MANDATORY SANCTION

When a vendor, who previously has been assessed a sanction for any of the mandatory sanctions listed above, receives another sanction for any of these violations, the Program must double the second sanction. CMP's may only be doubled up to the limits allowed as defined by this Handbook.

THIRD OR SUBSEQUENT MANDATORY SANCTION

When a vendor, who previously has been assessed two or more sanctions for any of the mandatory sanctions listed above, receives another sanction for any of these violations, the Program must double the third sanction and all subsequent sanctions. The Program may not impose CMP's in lieu of disqualification for third or subsequent mandatory sanctions.

C. COWIC NONCOMPLIANCE POINTS THAT CAN LEAD TO VENDOR AGREEMENT TERMINATION

Findings of COWIC violations are assigned specific points.

- Points can be assigned for a single occurrence, a pattern of the violation, or non-correction of an issue cited as an observation.
- Points are cumulative and will be kept current for a period of two years as long as the vendor is authorized. Points will be removed two years after the date of the violation.
- In addition to points, the Program may initiate a claim for payment upon detecting that a violation has occurred in the redemption of a WIC transaction, e.g., sales tax was charged or a WIC shopper was required to make a payment to a vendor. Such payments are due within 30 days of claim.
- The Program may not provide prior warning before imposing points.
- A vendor shall be given a written notice of noncompliance, unless COWIC determines, in its discretion, on a case-by-case basis, that notifying the vendor would compromise an investigation.

Corrective actions (i.e., nonpayment, notification, CAP, mandatory training) are meant to resolve and document findings. A CAP is a formal, written plan provided to WIC by the vendor outlining the steps that will be taken to correct findings/violations. It includes the appropriate store training. Corrective actions are commensurate with the number of points accumulated for one or more of these violations in any combination.

Any combination total of:

- 2-9 points = Initial or follow-up warning letter or request for CAP*
- 10-19 points = Corrective Action Plan (CAP)
- 20-35 points = CAP and mandatory training
- 36-40 points = 3-month termination from the Program
- 41-45 points = 6-month termination from the Program
- 46 or > = 1-year termination from the Program

COWIC NONCOMPLIANCE POINTS

1. Approved produce is not mapped and/or is not scanning at the register as WIC approved. **2 points**
2. Failing to allow WIC shoppers to pay for produce with a form of payment other than WIC when the purchase price exceeds the WIC benefit amount. **2 points**
3. Failing to provide a WIC shopper the opportunity to void a non-WIC item. **2 points**
4. Failing to provide a balance inquiry requested by a WIC shopper, including requiring a purchase before providing a balance inquiry or charging for a balance inquiry. **2 points**
5. Failing to maintain minimum stocking requirements. **2 points**
6. Failing to inform WIC customers with a sign posted on the shelf of infant formula location if not stocked on shelf. **2 points.**
7. Failure to accept a certified letter or leaving a certified letter unclaimed from COWIC. **3 points**
8. Having a shelf tag(s) posted on non-COWIC items. **3 points**
9. Use of the acronym "WIC" or the WIC logo in total or in part without the written consent of COWIC, including the use of shelf tags on unapproved items or the use of unapproved shelf tags. **4 points**
10. Prohibiting WIC shoppers from using discount coupons, loyalty cards or promotion specials to reduce the WIC benefit amount. **4 points**
11. Failing to post current prices for WIC foods on food items or shelves. **4 points**
12. Requiring a WIC shopper to produce identification. **4 points**
13. Requiring a minimum eWIC purchase. **4 points**
14. Non-approved items mapped as produce. **4 points**
15. Discourteous or discriminatory treatment of a WIC shopper. **5 points**
16. Failing to be trained on how to properly perform WIC transactions. **5 points**
17. Limiting authorized WIC shoppers in their choices of WIC products, e.g., allowing only an expensive brand of cereal. **6 points**
18. Charging sales tax on WIC food items. **6 points**
19. Failing to provide purchase receipts to a WIC shopper. **6 points**

20. Failing to allow the purchase of up to the full amount of WIC foods if such foods are available and desired by the WIC shopper. **6 points**
21. Participating in a transaction that is a conflict of interest. **7 points**
22. Failure to submit information including, but not limited to, receipts, CAP's, Price Lists, change of address, etc., requested by COWIC within the time period specified by the Program. **7 points**
23. Failure to attend or complete a scheduled monitoring visit. **7 points**
24. Treating WIC shoppers differently than non-WIC customers. **8 points**
25. Seeking payments from WIC shoppers for WIC transactions. **9 points**
26. Entering a WIC shopper's PIN or asking a WIC shopper for their PIN. **9 points**
27. Discriminating against WIC shoppers because of race, color, national origin, sex, age or disability. **9 points**
28. Stocking infant formula past the "use by" date. **9 points**
29. Failing to allow monitoring or training of vendor or staff by WIC personnel after one missed session and/or a mutual opportunity to reschedule. **11 points**
30. Failure to attend or complete a mandatory training session after one mutual opportunity to reschedule. **14 points**
31. Allowing an eWIC transaction in a self-checkout lane that has not been approved by COWIC. **14 points**
32. Providing infant formula that was not purchased from approved wholesalers, distributors and vendors licensed in Colorado and through manufacturers registered with the FDA that provide infant formula. **19 points**
33. Failing to provide complete purchase sales records, receipts and/or invoices upon request during a monitoring, investigation or inventory audit. **19 points**
34. Entering a WIC shopper's eWIC card number (PAN) manually into the POS system without the card present. **19 points**

SECTION IX. APPEALS, PENALTIES AND WIC/SNAP COOPERATION

A. ADMINISTRATIVE APPEALS PROCEDURES

Vendors may appeal actions taken against them in accordance with the Administrative Review Procedures for Vendor Appeals (Exhibit G). Vendors will only be allowed to continue accepting WIC transactions, pending an appeal, if an inadequate participant access determination is made.

Appealing an action does not relieve a vendor that is permitted to continue operations while its appeal is in process from the responsibility of continued compliance with the terms of any written agreement with the Program.

B. CIVIL MONEY PENALTY (CMP)

A vendor shall be assessed a CMP in lieu of disqualification only if the disqualification would result in inadequate participant access as defined above. The CMP is calculated as follows: 10 percent of the vendor's average monthly WIC redemptions multiplied by the number of months the vendor would have been disqualified will determine the CMP. The vendor's monthly WIC redemption for the previous six months will be used to determine the average monthly WIC redemptions. For a violation that warrants permanent disqualification, the amount of the civil money penalty shall be the maximum amount specified in § 3.91(b)(3)(v) of this title for each violation. When during the course of a single investigation the State agency determines a vendor has committed multiple violations, the State agency must impose a CMP for each violation.

For example:

January	\$10,000
February	\$ 8,500
March	\$10,300
April	\$ 9,000
May	\$ 7,000
June	\$ 5,000
\$49,800 ÷ by 6 months = \$8,300 Average monthly WIC redemptions	

X0.10 (10 %)
 \$830
x12 Months disqualification period
 \$9,960 Civil Money Penalty (CMP)

CMP limits for a vendor convicted of trafficking in food instruments or convicted of selling firearms, ammunition, explosive, or controlled substances in exchange for food instruments can be found in the federal regulations USDA 7 CFR 3.91.

If a vendor does not pay, only partially pays or fails to timely pay a CMP within 30 days of the notice of the CMP, the Program will disqualify the vendor for the length of the disqualification corresponding to the violation for which the CMP was assessed.

C. DISQUALIFICATION – WIC AND SNAP

The Vendor Agreement does not constitute a license or a property interest. If a vendor is disqualified, the Program will terminate the vendor's WIC Agreement and the vendor will have to reapply in order to be authorized after the disqualification period is over. In all cases, the vendor's new application will be subject to the Program vendor authorization criteria in effect at the time of reapplication.

The vendor may not voluntarily withdraw from the Program as an alternative to disqualification from mandatory federal sanctions. Disqualification must be entered on the record. In addition, vendors may not use nonrenewal of the agreement as an alternative to disqualification from the mandatory federal sanctions.

When during the course of a single investigation, the Program determines that the vendor has committed multiple violations, which may include violations subject to sanctions, the Program shall disqualify the vendor for the period corresponding to the most serious mandatory violation. However, the Program shall include all violations in the notice of sanction. If a mandatory federal sanction is not upheld on appeal, then the Program may impose a Program-established sanction and the appropriate number of noncompliance points.

WIC/SNAP DISQUALIFICATION

- Uniform federally mandated sanctions (defined in 7 CFR Part 246.12) have been established for both WIC and SNAP, therefore, vendors assessed a CMP by the WIC Program may be disqualified from SNAP for an equal period of time. Disqualification from WIC may result in disqualification as a vendor in SNAP per section 278.6(e)(8) of the federal SNAP regulations. Such disqualification may not be subject to administrative or judicial review under SNAP.
- Vendors disqualified from SNAP for a federally mandated sanction (Class A violations) will be disqualified from the WIC Program.
- The reciprocal WIC disqualification will be for the same length of time as SNAP disqualification. However, the period of disqualification may begin at the same time or a later date than the SNAP/WIC disqualification.
- Prior to disqualifying a vendor for a SNAP disqualification, the Program will determine if disqualification of the vendor would result in inadequate participant access. If the Program determines that disqualification of the vendor would result in inadequate participant access, the Program will impose a CMP in lieu of disqualification. The Program cannot impose a CMP in lieu of disqualification for third or subsequent sanctions for Class A violations.

- Reciprocal disqualifications are not subject to Administrative Appeal in the WIC program.
- Vendors assessed a CMP by SNAP in lieu of disqualification, due to participant hardship, may also be disqualified from the WIC Program. Vendors disqualified from the WIC Program as a result of a SNAP CMP may file an Administrative Appeal with the WIC Program.
- If the disqualification period extends beyond the expiration date of the Vendor Agreement, the reauthorization period will be delayed to allow for the completion of the disqualification period.

D. WIC AND SNAP PROGRAM COOPERATION

In order to promote cooperation and reduce vendor/vendor abuse in both SNAP and WIC, information related to vendors, including violations, sanctions and program disqualification may be shared between the two programs subject to federal and state Freedom of Information Act laws and regulations. Information exchanged must be disclosed and used only in direct connection with the administration and enforcement of WIC and SNAP regulations and procedures, except when authorized by law.

SECTION X. AUTHORIZATION SELECTION CRITERIA

COWIC is required by federal regulations to authorize a limited number of retail stores that will ensure that Program food funds are being spent in the most efficient and cost-effective manner, ensure adequate participant access, and allow for effective Program management, oversight and review of store performance. Authorized vendors are made up of grocery stores, commissaries, pharmacies, home delivery contractors and farmers. Selection criteria for the authorization of farmers are detailed in the Farmer Handbook. COWIC will review vendors' compliance with the authorization selection criteria throughout the agreement period. Failure to remain in compliance with these criteria may result in Program sanctions or termination of the Vendor Agreement.

A. CRITERIA: GROCERY STORES, COMMISSARIES AND PHARMACIES

Vendors must meet the following authorization selection criteria at the time of application and throughout the agreement period:

- **Infant Formula:** Vendors authorized to participate in the WIC Program shall only purchase infant formula from wholesalers, distributors and vendors licensed in the state and in accordance with state law (including regulations) and infant formula manufacturers registered with the FDA that provide infant formula. A listing of the current approved wholesalers, distributors, vendors and manufacturers is available from COWIC and on the website. Vendors may be required to produce purchase invoices to document compliance.
- **Regular Hours:** The vendor maintains regular business hours. This includes a minimum of two four-hour blocks of time at least five days per week. Daily operating hours shall be consistent from week-to-week and shall be posted.
- **Training:** The vendor must accept training on WIC Program regulations and processes and must provide and document training to employees who will handle WIC transactions, prior to accepting eWIC cards and periodically as required throughout the agreement period.
- **WIC redemptions less than 50%:** New vendor applicants expected to derive more than 50% of their annual food sales revenue from WIC food instruments must notify COWIC upon application. If COWIC finds a vendor is an above-fifty-percent vendor, more requirements and selection criteria may need to be met and approval is not guaranteed. Upon initial application, vendors must make sales data available and may be required to provide documentation of sales amounts. If not yet opened, expected sales are required. COWIC will monitor the food transactions of newly authorized vendors to determine if WIC redemptions are above or below 50% of revenue of food sales. The term "food sales" refers to sales of SNAP eligible items, unless otherwise noted. (A description of food sales is provided in the Exhibits section.)
- **Preventing WIC Returns:** The store has a policy in place that will ensure no WIC foods will be returned or exchanged (as outlined in Section VI).
- **Accuracy:** True and correct information was submitted on the application.

- **No Discrimination:** The store must not discriminate on grounds of race, color, national origin, sex, age or disability, and must make reasonable accommodations for shoppers with disabilities.
- **No Current Disqualification:** The owner must not currently be disqualified from the SNAP or WIC programs or been assessed a CMP for hardship and the disqualification period that would otherwise have been imposed has not expired.
- **Financial Statements/Documents:** Vendors agree to maintain and provide upon request the following information: monthly, quarterly or annual total volume of business and/or gross edible food sales and purchase and inventory records of WIC foods purchased for a set period of time such as invoices, receipts and bank deposits, inventory/shelf price records of WIC food items and SNAP sales volume. COWIC may request specific records to validate this information at any time during the agreement period. (Additional information on financial statements and documents in Definitions and Details section).
- **Competitive Pricing:** WIC item prices must be found at application and remain competitive with other vendors in peer grouping (i.e., like stores in the same geographical type area) within 3 standard deviations of the peer group's mean price (or 120% if there are not sufficient redemptions of that item) at the UPC level.
- **No Conviction:** In accordance with 7CFR Part 3017 (Subpart A-6), the owner, officers or managers must not have been convicted of or had a civil judgment entered against them for any activity indicating lack of business integrity (see Definitions) at any time during the last six years. No history of business-related criminal convictions or civil judgements.
- **Email Address:** A valid email address that is checked regularly must be provided for the receipt of notifications. Notifications, including Program and policy updates, authorization notices, notices of adverse action (e.g., denials, notice of sanctions) and results of compliance activities such as investigations, will be sent by the Program via email. The vendor agrees to return an email delivery and/or read receipt when requested and is responsible to provide updates and/or changes to the electronic mailing (i.e., email) address. COWIC does not guarantee emails will be sent via blind copy (i.e., blind carbon copy). Multiple email addresses are encouraged.

B. ADDITIONAL CRITERIA: GROCERY STORES AND COMMISSARIES

Grocery stores and commissaries must also meet the following criteria at the time of application and throughout the agreement period:

- **SNAP:** The store must be authorized to accept SNAP. (An exception may be made in the requirement for SNAP authorization if inadequate participant access would result in denial of authorization.)
- **Authorized Broker/Distributor Food Source:** Vendors authorized to participate in the WIC Program shall purchase staple food items directly from a wholesaler supplier or other registered (i.e., has applicable local, state and/or federal licenses and permits) food suppliers (such as authorized distributors, brokers, manufacturers and/or fresh produce suppliers) with no history of business-related criminal convictions or civil judgements. Vendors may be required to produce purchase invoices to document compliance.

- **Stocking Requirements:** The store meets the Minimum WIC Food Stocking Requirements of COWIC approved food items (based on the current Food List) as outlined in Section IV, at all times, in sufficient quantities and variety to meet the needs of participants. Before authorization and throughout the agreement period, COWIC reviews applicant stocking levels of WIC-approved items so that adequate amounts are available for participant redemption. Vendor stock is examined (typically by the local agency) during the application process and reported to COWIC.



- **Food Sales:** The store is a grocery store that sells a variety of food products with a primary function of selling groceries. Vendors that are primarily convenience stores and/or gas stations will not be considered as grocery stores and will not be COWIC authorized. Vendors will be asked upon application—both at original authorization and at renewal—for retail sales, SNAP authorization and stocking information. The information provided by the vendor will be compared to SNAP information as appropriate and available. Vendors that are found to be identified as not meeting the criteria below as a grocery store will be denied authorization or terminated. The store provides a variety of staple foods to include:
 - At least three different varieties of items in each of these staple food categories:
 - Fresh meat (e.g., chicken, tuna, ham, beef; prepackaged luncheon meats do not qualify).
 - Grains (e.g., bread, rice, cereal).
 - Dairy products (e.g., milk, cheese, butter).
 - At least three different types of items in each of these staple food produce categories:
 - Fresh fruits (e.g., apples, oranges, pears).
 - Fresh vegetables (e.g., squash, spinach, cabbage).
 - At least one of the following is true:
 - Annual food sales (i.e., food items eligible for purchase with SNAP benefits) are greater than or equal to 65% of total annual sales.
 - Annual food sales exceed \$1 million.
 - The annual sale of hot and/or cold freshly prepared foods that are ready-to-eat does not exceed 50% of total sales.
 - The store must have a valid food service license as defined in the Colorado Retail Food Establishment Rules and Regulations.

C. ADDITIONAL CRITERIA: PHARMACIES AND HOME DELIVERY CONTRACTORS

Pharmacies meeting the definition of a pharmacy (please see Definitions and Additional Details) must meet the following criteria at the time of application and throughout the agreement period:

- Licensure: Licensed as a pharmacy.
- Medical Formulas Only: Pharmacies agree not to provide standard infant formula unless requested by the COWIC State Office.
- Delivery: Home Delivery Contractors for specialty formulas must meet criteria and requirements outlined in the Home Delivery Contractor Agreement.
- Online Ordering: When approved by the COWIC State Office, an eWIC card and approved authentication method may be used to access online ordering with in-store or curbside payment or an online purchase with pick-up or delivery of foods.

D. SALE OF STORE TO CIRCUMVENT SANCTION

COWIC may not authorize an applicant vendor if it determines the vendor's previous owner has sold the store in an attempt to circumvent a WIC sanction. COWIC may consider such factors as whether the store was sold to a relative by blood or marriage of the previous owner(s) or sold to any individual or organization for less than its fair market value. Authorization will be denied or terminated if it is determined that the store has been sold in an attempt to circumvent a WIC sanction.

E. EWIC AUTHORIZATION SELECTION CRITERIA

In applying for WIC authorization, the vendor agrees to comply with Electronic Benefit Transfer (EBT) operating rules, the Colorado WIC Agreement and the following stipulations:

1. Demonstrate its capability to accept WIC benefits electronically prior to authorization. If a vendor is necessary for participant access and cannot accept WIC benefits electronically, COWIC may provide the vendor with or share in the cost of a stand-beside POS system.
2. Comply with EBT operating rules, standards and technical requirements, as amended from time to time, including but not limited to WIC EBT Operating Rules, Specifications for WIC EBT transactions, 7 CFR 246 and Implementation Guidelines.
3. Not ask the WIC participant/parent/caretaker/proxy to pay cash for the sales tax amount that is applied to manufacturer's coupons, but instead shall subtract the sales tax on the coupon from the face value of the coupon and then shall subtract the remaining value of the coupon from the retail price of the WIC food(s). 7 CFR 246.12(h)(3)(vii).
4. Allow the participant/parent/caretaker/proxy to purchase only those WIC approved foods listed on the participant's benefit balance receipt and the Food List. Provide only the approved foods in authorized quantities and size specified.

5. Not seek restitution from participants/parents/caretakers or proxies for WIC supplemental foods purchased in a COWIC transaction that were not paid for or only partially paid for by COWIC. COWIC is not obligated to pay for improperly handled or voided EBT transactions. 7 CFR 246.12(h)(3)(x).
6. Not conduct WIC transactions in a separate liquor portion of the store.
7. Not conduct WIC transactions in self-checkout lines without pre-approval.
8. Not requiring a minimum eWIC purchase.
9. Not provide or allow change (i.e., cash) to a WIC customer for purchases less than the total value of the cash value benefit (CVB) for produce. 7 CFR 246.12 (h)(3)(x).
10. Allow the WIC customer to pay for produce with a form of payment other than eWIC during a transaction when the purchase price exceeds the WIC benefit amount available to the WIC customer.
11. Provide the WIC customer the options to either: a) have non-WIC items voided or b) to pay for them with a form of payment other than WIC for items not ringing up as WIC as expected.
12. Agree that WIC authorization is not a guarantee of sales.
13. Have a current, paid maintenance agreement in place with their system dealer/technical support personnel.
14. Reimburse COWIC for claims submitted for payments already made by the Program for charges of more than the actual purchase of the supplemental foods. COWIC may make price adjustments to the purchase price on WIC transactions submitted by the vendor for redemption to ensure compliance with the price limitations applicable to the vendor. When COWIC determines the vendor has committed a vendor violation that affects the payment to the vendor, COWIC will delay payment or establish a claim. The vendor must submit payment for the claim or an adequate justification for the excessive charge to COWIC within 30 days of written notification. COWIC may offset the claim against current and subsequent amounts to be paid to the vendor. In addition to denying payment or assessing a claim, COWIC may sanction the vendor for vendor overcharges or other errors in accordance with the COWIC sanction schedule. 7CFR 246.12(h)(3)(viii)(ix).
15. Not requiring payment of COWIC (including WIC benefits) for ordering services or delivery of WIC foods; WIC foods offered for delivery cannot be priced higher than the in-store price.
16. Notify COWIC of major software and/or equipment adjustments or alterations are made to the vendor's in-store ECR system (e.g., changes in purchase receipt, voiding, scanning and payment processing).
17. Maintain a COWIC certified in-store Electronic Cash Register (ECR) system in a manner necessary to ensure system availability for WIC EBT redemption processing during all hours the vendor is open. The vendor agrees that its ECR system shall transact cash value for authorized fruits and vegetables. Execution of this Vendor Agreement is conditioned on the vendor maintaining its state certified in-store ECR system that accommodates cash value. After execution of this Agreement, the vendor's failure to maintain a state-certified ECR system on an on-going basis that ensures system compliance with WIC policies and procedures, transacts cash value, and/or ensures the accuracy of data, shall result in termination of the Vendor Agreement.

18. Ensure the certified in-store EBT redemption process allows a reasonable degree of security for protecting the PIN used by WIC shoppers. Only the WIC shopper may enter the PIN to initiate the transaction. The vendor must not enter the PIN for the WIC shopper.
19. Provide necessary receipts for the WIC shopper to accept/approve or reject the WIC transaction. Vendor personnel shall NOT accept/approve or reject/cancel the WIC transaction for the WIC shopper.
20. Scan or manually enter UPC or Price Look-Up (PLU) codes only for WIC-authorized items being redeemed. Never scan codes from UPC/PLU codebooks, reference sheets or from any product not actually purchased with the eWIC card.
21. Notify COWIC and/or the COWIC eWIC contractor of significant changes to the store's ECR system and/or processing of eWIC.
22. Request state re-certification of the vendor's in-store ECR system if the vendor alters/revises the system in any manner that impacts the WIC EBT redemption/claims processing after initial certification is completed. In the event an in-store ECR system is reconfigured or modified by the vendor and/or other parties in such a way that the ECR system no longer exhibits the required system accuracy, integrity, or performance required and under which requirements the ECR system was certified, COWIC will not accept a claim file from the system. The vendor is liable for the costs of all recertification events needed to return the ECR system covered by this Agreement to full compliance with COWIC's system requirements. Failure to seek re-certification when the vendor's ECR system is altered/revised shall subject the vendor to financial liabilities and/or disqualification.
23. Comply with COWIC policies for creating and updating the in-store UPC/PLU category/subcategory table of WIC authorized foods. Map only approved produce items (e.g., new, seasonal, random weight produce) to the appropriate corresponding PLU. Failure to comply shall result in the vendor's financial liability for WIC EBT sales transactions involving invalid or unauthorized UPC/PLU codes and other sanctions as appropriate.
24. Adhere to the International Federation for Produce Standards (IFPS) for PLU codes for the purpose of WIC EBT claim submission. Any fruit/vegetable UPC/PLU reserved for store use must map back to an International Standard PLU for the same produce.
25. Submit information (e.g., UPC/PLU, description, picture, etc.) of new approved items to COWIC. Options for sending the information include texting a picture to (720) 630-3391, or providing an excel file containing item details to cdphe_askwic@state.co.us.
26. Reimburse COWIC pro-rata for WIC EBT system costs, if applicable, if the vendor is disqualified, terminated or closed.
27. Have an authorized Colorado WIC Vendor Agreement and operate a certified system implementation prior to accepting eWIC cards for purchase.
28. Notify COWIC within three days in the event of eWIC transactions becoming inoperable.
29. Accept and assume payment for equipment, ongoing maintenance and operational costs. Unless the vendor is identified as needed for participant access to WIC foods and/or pre-approved for the provision of a stand-beside device.

SECTION XI. BECOMING (AND REMAINING) A COWIC AUTHORIZED VENDOR

A. THE APPLICATION

If you are interested in becoming a WIC authorized vendor, please complete an online WIC Vendor Application found at coloradowic.gov/apply-be-wic-store.

If you have questions about the WIC food delivery system, please contact us at (303) 692-2400 or email cdphe_askwic@state.co.us.

Please Note:

- Only completed applications will be assessed for eligibility. COWIC will make one attempt to notify the applicant of deficiency.
- Vendors cannot reapply for WIC authorization for at least 12 months from the date an application is denied, unless local conditions change, e.g., the only store in the area closes or is disqualified. Farmers and pharmacies are exempt from this waiting period.
- COWIC reserves the right not to process new applications (i.e., for initial authorization) received during up to the last 120 calendar days of the current agreement period.
- COWIC may deny authorization or terminate an executed agreement if it determines that the applicant provided false or incomplete information in connection with its application.

B. STEPS IN THE APPROVAL PROCESS

STEP 1: APPLICATION

If you are interested in becoming a WIC authorized vendor, please complete an online [WIC Vendor Application](http://www.ColoradoWIC.gov/apply-be-wic-store) on our website: www.ColoradoWIC.gov/apply-be-wic-store. The application includes application, signed vendor agreement* and price list*.

*The majority of chain stores have one WIC Vendor Agreement that covers each of their WIC-authorized stores. Additional stores within the chain are added to the existing Vendor Agreement as they are approved. Therefore, submission of duplicate Agreements and Price Lists for chain stores are not required.

STEP 2: MEETING AUTHORIZATION CRITERIA

COWIC will review the application in accordance with WIC authorization selection criteria. If it is determined, that the criteria are not met, the application will be denied and the vendor notified within 90 days.

STEP 3: PRE-AUTHORIZATION VISIT

Pre-authorization site visits are conducted as part of the application process for new vendors seeking WIC authorization. Once COWIC determines a vendor's application is complete and they are eligible for WIC authorization a pre-authorization visit of the store is scheduled. This visit consists of verifying WIC minimum stock requirements are being met, prices are posted, and WIC foods are fresh and within their expiration date. Following a successful inspection, training is provided, and the grocery store or pharmacy will become an authorized WIC vendor. If it is determined that the selection criteria has not been met, the application is denied.

STEP 4: ORIENTATION VISIT

The LARC will conduct an orientation session with at least one representative of the store within 45 days after receipt of the application. Please note that Steps 3 (above) and 4 may be conducted simultaneously. The purpose of the orientation visit is to:

- Provide training to store representative(s) on WIC training topics including, benefits and nutritional goals of COWIC, why specific foods are prescribed and details of the Food List.
- Review WIC transaction procedures.
- Discuss Program policies and procedures and the sanctions for noncompliance.
- Identify any areas that are out of compliance with Program policies and procedures and set a mutually agreed upon plan and date for correction.
- Provide training and support to the store representative(s) through information and tools so that they can successfully conduct cashier initial preparation training on WIC policies and procedures. Typically, a WIC manual is provided to the store at the visit.

STEP 5: TRAINING AND DOCUMENTATION

Store and chain managers are responsible for training cashiers, as well as other staff involved with WIC transactions, on accepting eWIC cards so that they are comfortable and prepared to take eWIC transactions by providing initial cashier training. Section VI details WIC training. Store trainers are welcome and strongly encouraged to be in attendance at the orientation visit that is conducted by WIC staff and to use tools and materials provided by WIC in their cashier training. Internal training processes used to conduct initial cashier training should be submitted to COWIC for approval.

Training must be documented, provided to WIC, and a copy maintained in the WIC manual as required.

STEP 6: REVIEW OF CRITERIA

Upon completion of orientation, cashier training and the appropriate documentation, COWIC will complete the initial criteria review and assess the vendor for meeting the authorization selection criteria, with the exception of EBT capability. Vendors not in compliance will be notified of denial.

STEP 7: REVIEW OF EWIC CAPABILITY

The capability for EBT will then be assessed. Vendors must demonstrate EBT capability and pay for their EBT equipment and EBT solution. Vendors demonstrate EBT capability when the following is met:

- The vendor has a fully certified POS that can accept WIC purchases, obtain a benefit balance, and complete an eWIC transaction accurately and securely by exchanging files pursuant to COWIC's eWIC system requirements and eWIC authorization selection criteria. The vendor is responsible for the cost and fees, including equipment, phone and/or internet and eWIC transaction processing.
- The certified eWIC system may be integrated into the vendor's Electronic Cash Register or (with approval) demonstrated through the use of an eWIC stand-beside device leased or purchased from the COWIC eWIC contractor. A stand-beside device requires the vendor to have sufficient infrastructure (e.g., electrical outlet, internet, patch/Ethernet cable and/or phone line, etc.) to install and use an eWIC stand-beside device to put through WIC transactions. COWIC will provide contact information for the current eWIC contractor with leasing/purchase options.

COWIC will provide and/or share the cost of a POS stand-beside device used for WIC transactions for vendors that are identified as meeting a participant access need and/or for vendors authorized before January 1, 2019.

STEP 8: AUTHORIZATION

A WIC manual, signed agreement, authorization letter, and "We Accept eWIC Here" decals will be sent to authorized vendors with a notice to the LARC.

C. LOCATION AND FACILITY CHANGE

WIC authorized vendors changing physical location or temporarily closing for remodeling should inform COWIC at least two months before the change and provide the following information: changes in SNAP number, staffing, contact information/address, store name and/or store number. Reapplication may not be required if confirmed by COWIC that the change does not constitute a new store. WIC-authorization is by state and non-transferable.



D. OWNERSHIP CHANGE

If ownership of a vendor changes during the agreement period, the Vendor Agreement becomes void on the date of ownership change. If you sell your store to another person or group of persons, or there is a change in majority owner/shareholder, whether by gift, purchase, or lease, you must report the change to COWIC within 15 days of the change. COWIC will determine if a new application should be submitted.

Examples of a change of ownership include: new sole owner, partner, stockholder, or LLC member; asset purchase of a corporation or LLC; new FEI number; new Seller's Permit or taxpayer's number; new food dealer's license; retirement or death of a sole owner, partner, stockholder, or LLC member.

The new owner must file an application and be approved prior to accepting WIC transactions. Vendors should provide written notification to COWIC 60 days in advance of such changes in order for the local agency to contact participants affected by the change. Failure to notify COWIC of ownership change may result in the repayment of WIC funds issued to the unauthorized store owner.

Exception #1: COWIC may permit vendors to move short distances without terminating the vendor agreement. COWIC has the discretion to determine the length of advance notice required for vendors reporting changes under this provision, whether a change in location qualifies as a short distance, and whether a change in business structure constitutes a change in ownership.

Exception #2: Regarding corporate changes of ownership and/or mergers, COWIC has the discretion to determine whether a change in business structure constitutes a change in ownership.

REPORTING BUSINESS CHANGES

The vendor is responsible for notifying COWIC of any changes in the business that may affect authorization eligibility. This includes any changes to the retail space (total number of cash registers, cash register system provider, or store square footage); changes to the business name, status of business entity, and corporate officers or managers; or other changes as listed below. Call (303-692-2400) or email COWIC (cdphe_cowicstores@state.co.us) to report any change.

PERMANENT OR TEMPORARY CLOSINGS

Vendors must immediately report a permanent or temporary store closing to COWIC including if the store is closed due to fire, extended power outage, flood, or other natural disaster.

E. RE-AUTHORIZATION CRITERIA

Vendor Agreements are valid only for the period of time specified and a vendor may not continue accepting eWIC cards past the agreement expiration date. Information for the renewal of authorization will be sent directly to independent vendors and to the headquarters representative of chain vendors at least 30 days in advance of the expiration date of the Vendor Agreement.

COWIC reserves the right to deny a vendor's re-authorization based on negative customer complaints or ongoing poor customer service reports.

F. PARTICIPANT ACCESS CRITERIA AND CONSIDERATIONS

Limited access to sources of healthy and affordable food may make it harder for some Americans, including those participating in WIC, to eat a healthy diet. Participant access is not defined as participant convenience or preference. Inadequate participant access would cause a hardship, not just an inconvenience, to participants. The impact on WIC participants' access to healthy supplemental foods is a consideration in the WIC partnership with vendors in the following areas.

- Sanctions: Prior to the disqualification of a vendor, participant access is reviewed in determining whether to disqualify the vendor or impose a CMP in lieu of disqualification. If disqualification of the vendor would result in inadequate participant access, then a CMP will be imposed. The Program will consider participant access when determining reciprocal disqualification based on SNAP disqualification or CMP.
- Authorization: Vendors that meet WIC authorization criteria other than for SNAP and eWIC capability criteria will be reviewed to determine if they are needed for participant access. If the Program determines a vendor is necessary for participant access, waivers may be made in these areas:
 - SNAP: An exception may be made to the SNAP authorization requirement.
 - eWIC Capability/Cost Sharing: The Program may be able to provide or share in the cost of a eWIC point-of-sale stand-beside device. However, if the vendor loses a state paid for stand-beside device, the vendor will be required to pay back the COWIC Program for the cost of the stand-beside equipment.
 - Business integrity including civil judgements and criminal convictions.
 - Competitive Price Selection Criteria. See Section VI.
- At the Program's discretion, a vendor may be authorized outside of the normal authorization process when determined an inadequate participant access exists. Emergency situations may be caused by, but are not limited to, the following circumstances:
 - Disqualification (or agreement termination) of the only authorized vendor in the area,
 - A change of ownership or location of an authorized vendor, or
 - Disaster or other causes for the loss of an authorized vendor.

Participant access determinations are at the Program's discretion and are not subject to administrative review. The Program must include documentation of its participant access determination and any supporting documentation in the file of each vendor who is disqualified or receives a CMP in lieu of disqualification.

When making the determination of participant access, the Program considers indicators of food access in the area the store is located, such as:

- Accessibility to sources of healthy food, as measured by distance to a WIC-authorized store or by the number of WIC-authorized stores in an area.
- Individual-level resources that may affect accessibility, such as nationality, ethnicity or religious dietary needs, refugee status, family income, language, or vehicle availability.
- Neighborhood-level indicators of resources, such as the average income of the neighborhood and the availability of and proximity to public transportation, family shelters, or transitional housing.
- Geographic barriers that would significantly restrict participants' access to using other authorized vendors operating in the area.

Participant access will be determined as adequate when there is an adequate number of authorized vendors operating in the area to meet participant demand and accessibility.

DEFINITIONS AND ADDITIONAL DETAILS

Administrative Appeal: A hearing procedure whereby a vendor adversely affected by a WIC action may appeal the action to an impartial hearing officer provided by the Colorado WIC state agency.

Administrative Finding: A factual or legal determination made by the Program through investigations, complaints, data analysis or administrative reviews.

Agreement and Handbook: By reference this WIC Handbook is made part of the Colorado WIC Vendor Agreement (Vendor Agreement), and the policies and procedures outlined in this WIC Handbook are an integral part of the Vendor Agreement. The WIC Handbook was developed in accordance with 7 CFR Part 246, the Special Supplemental Nutrition Program for Women, Infants and Children Food Delivery System. It incorporates existing federal regulations and policies pertaining to the Program's food delivery system in Colorado; any changes to the federal regulations and/or the Program's policies and procedures will be incorporated as policy letters and/or agreement amendments and sent to vendors.

As part of the Vendor Agreement, vendors agree to comply with existing federal regulations, COWIC policies and procedures, and amendments as provided for in policy letters issued by the Program. Vendors are subject to all applicable federal and state laws and should not rely solely on the WIC Handbook for interpretation of applicable requirements.

Applicant: A grocery store, commissary, farmer, pharmacy or home delivery contractor that applies to COWIC to be an authorized WIC vendor.

Approved/ Allowable Foods: Only those types, brands, sizes and varieties of foods and infant formulas as listed in the current Colorado Food List and Shopping Guide.

Approved Product List (APL): Electronic files identifying WIC food items authorized by COWIC for purchase with WIC benefits. These files, which consist of thousands of UPC and PLU, are developed by COWIC and sent nightly to stores. Most stores get the APL automatically; a smaller number should manually download the APL. If an item's UPC is not on the APL, the item will not ring up as WIC. Shoppers and vendors can submit an item (and UPC) to COWIC for review. Items that are WIC approved by COWIC will be added to the APL and available to the shopper after at least two days.

Authorized Broker or Distributor: Manufacturer, distributor, wholesale supplier or other registered (i.e., has applicable local, state and/or federal licenses, permits, valid Federal Tax Identification Number) food supplier (such as a broker and/or fresh produce supplier). For a listing of WIC authorized formula sources, please go to www.ColoradoWIC.gov.

Benefits: Food items (or dollar amount, in the case of fruits and vegetables) issued to a WIC participant.

Benefits Balance: A listing of benefits available with an eWIC benefit card that specifies the quantity, food category, size, dollar amount and sometimes brand of food prescribed to a WIC household that must be redeemed within a designed time.

“Best if used by”: Date limiting the sale or use of the food item as provided for in Federal Food Drug and Cosmetic Act.

Business Integrity: Absence of conviction or a civil judgment for any activity indicating a lack of business integrity, including fraud, antitrust violations, embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, receiving stolen property, making false claims and obstruction of justice

Cash Register/Active eWIC Cash Registers: An electronic device used at a point-of-sale (POS) to calculate financial transactions that allow for scanning items and processing payments. For the purposes of determining and informing COWIC of the number of active eWIC cash registers at authorization and renewal of authorization, count the number of individual devices capable of scanning WIC items and processing eWIC receipts, payments and transactions that are in a lane available to WIC shoppers and routinely used by shoppers to purchase their grocery items. This includes integrated cash registers and stand-beside devices used for eWIC transactions that are actively used by WIC customers in the purchase of WIC foods, both self-checkout (if certified for processing eWIC) and cashier assisted lanes. This excludes cash registers or stand-beside POS devices used primarily for customer service, electronic, automotive or pharmacy purchases.

Cash Value Benefit (CVB)/ Also referred to as: Cash Value Voucher (CVV): A fixed-dollar amount associated with the eWIC card used by a WIC cardholder to obtain authorized fruits and vegetables. In the event the amount of fruits and vegetables exceeds the dollar amount available, the cardholder must be provided the option to pay the difference.

Change of Ownership: Any transfer of the right to control the assets or management of a vendor, or any majority changes in ownership of a sole proprietorship, of a partnership or of the stock of a corporation which owns a vendor location.

Civil Money Penalty (CMP): A monetary fine assessed against a vendor for Program abuse.

Claim: A bill or request for reimbursement of funds.

Class A Violations: Mandatory federal violations and sanctions as defined in 7 CFR Part 246.12. These violations are flagrant violations of Program policies and undermine the goals of the Program.

Colorado WIC/Colorado WIC Program/COWIC: United States Department of Agriculture’s Special Supplemental Nutrition Program for Women, Infants, and Children (WIC) as administered by the Colorado Department of Public Health and Environment (CDPHE). Also referred to as COWIC, Colorado WIC, Colorado WIC Program, WIC Program and the Program.

Colorado WIC Food List and Shopping Guide: List of WIC-approved foods developed by the Program. Also referred to as the COWIC Food List or Food List. Printed copies of this Food List brochure are available upon request.

Compliance Investigation: An investigation is a method used by the Program to determine if violations are occurring or have occurred in the past. An investigation may include an administrative review, covert compliance buys, inventory audits, and/or coordinated efforts with SNAP.

Compliance Buy: A covert, on-site investigation in which a representative of COWIC poses as a WIC shopper, conducts a WIC transaction and does not reveal during the visit that he or she is a COWIC representative.

Confidential Vendor Information: Based upon 7 CFR § 246.26(e), confidential vendor information is any information about a vendor that identifies the vendor except for the vendor's name, address, authorization status, telephone number, website/email address and store type.

Conflict of Interest: A conflict of interest exists when there is a pecuniary relationship between the vendor and the Program or the local agency; when relatives serve WIC participants; and/or when training or monitoring visit is conducted by a local agency staff person who may be related to the store owner or other store management staff. Additionally, conflict of interest exists when relatives serve WIC participants. COWIC shall terminate the Vendor Agreement if it identifies a conflict of interest between the vendor and COWIC or the local agency.

Convenience Store: A store that offers a limited line of convenience items, typically open long hours. Primarily engaged in retail sale of a variety of canned goods, dairy products, pre-packaged meats and other grocery items in limited amounts, usually sell a large variety of ineligible products, such as hot coffee, alcohol or tobacco products or gasoline.

Conviction: A finding of guilt by a judge or jury or an entry of a plea of guilty.

Contract Brand Infant Formula: Infant formulas (except exempt infant formulas) produced by the manufacturer awarded the infant formula cost containment contract by the Program.

Corrective Action Plan (CAP): A written plan the vendor develops that outlines the steps that will be taken to correct violations identified during monitoring visits, compliance buys, complaints or administrative reviews.

Custom Data Processing, Inc. (CDP): An WIC EBT contractor and FIS business partner. FIS and CDP process eWIC transactions. At time of printing, CDP is the eWIC contractor and the main contact for the integrated vendors and TPP.

Days: Calendar days.

Disqualification: Termination of a vendor's authority to participate in the Program due to an established violation against the WIC Program.

Drug: (A) A beverage containing alcohol, (B) A controlled substance (having the meaning given it in section 102(6) of the Controlled Substance Act (21 U.S.C. 802(6)), or (C) A controlled substance analogue.

Educational Buys: On-site investigation in which a representative conducts a WIC transaction. The store manager or store representative is typically aware of the visit beforehand (and sometimes has requested the visit). The purpose of an education buy is generally to assist WIC, the store manager and the cashier to observe a WIC transaction and identify enhancements.

EBT: Electronic Benefits Transfer. The EBT system used for eWIC transactions is called eWIC.

Electronic Cash Register (ECR): A type of cash register used by stores with an integrated system to accept eWIC transactions.

Endorser: Participant, parent or caregiver of an infant or child participant who is authorized to obtain supplemental foods on behalf of a participant.

eWIC Card: Card that is used by a participant to obtain the specific supplemental foods loaded by the COWIC Program via an electronic benefit transfer.

Family: A group of related or non-related individuals who are living together as one economic unit, except that residents of a homeless residence or an institution shall not all be considered as members of a single family.

Farmer: A COWIC-eligible farmer is defined as an individual/sole proprietorship, partnership, non-profit or corporation who owns, leases, rents or sharecropper land in Colorado to grow, cultivate or harvest fruit and/or vegetable crops on that land.

Financial Statements/Documents: Vendors agree to maintain and provide upon request the following information: monthly, quarterly or annual total volume of business and/or gross edible food sales and purchase and inventory records of WIC foods purchased for a set period of time such as invoices, receipts and bank deposits, inventory/shelf price records of WIC food items and SNAP sales volume.

COWIC may request specific records to validate this information at any time during the agreement period, such as: invoices for staple food items from a wholesaler, distributor and/or manufacturer; financial statements, reports, tax forms or other records sufficient in establishing SNAP-eligible food sales. For example: Form 1065 for partnerships, Form 1040, schedule C for sole proprietorships or Form 1120 for corporations.

Acceptable purchase records or invoices shall legibly and clearly reflect the following: name and address of the supplier or wholesaler; name and address of the purchaser (if receipt is from wholesaler); date of purchase, including month, day and year; list of the items purchased including size, stock number (if available), UPC, quantity and unit price; method of payment, and sales receipts for WIC approved foods purchased at retail grocer (for resale by the Vendor) must include the name and address of the store, date of purchase, description of the exact items purchased (e.g., 14 ounces Malt-O-Meal), the unit price of the items and total quantity purchased.

The vendor is responsible for the validity of this information and sanctions, up to disqualification, may be assigned if the information is proven inaccurate or records cannot be produced. Purchase records (e.g., invoices and receipts) must clearly describe the items or have computer codes which can be verified by the

seller. Hand dated documents are not acceptable.

Findings: A determination made by the Program or the local agency WIC staff regarding vendor violations. This may include, but is not limited to, the results of administrative reviews, investigations, data analysis, complaints or monitoring visits.

Fidelity Information Services (FIS): An eWIC contractor and CDP business partner. At time of printing, FIS and CDP process COWIC transactions and lease stand-beside equipment to non-POS-integrated vendors through a Merchant Agreement.

Food Delivery System: The method used by the Program to provide supplemental foods to WIC participants.

Food Instrument: The instrument used by WIC to conduct WIC transactions, (e.g., eWIC cards).

Grocery Store: A retail store in a fixed and permanent location that maintains regular business hours, whose primary business is the sale of food. A store primarily engaged in retail sales of a variety of food products and general merchandise as a full line grocery store.

A grocery store stocks on a continuous basis, multiple varieties of the following product categories: (i) canned foods, (ii) frozen foods, (iii) dairy products, (iv) fresh and frozen meat, fish and poultry, (v) fresh fruits, (vi) fresh vegetables, (vii) juices, (viii) bakery/grain goods including, but not limited to, breads, pastries, rice, crackers and tortillas, (ix) dried grains and beans, (x) baby products, (xi) household cleaners, (xii) laundry products and (xiii) health care products.

Handbook: Colorado WIC Vendor Handbook. Also referred to as the WIC Handbook.

Herbs: Herbs must be fresh and can include those packaged in a plastic container/bunch/etc. Blends of any of the below are also allowed. Dried or potted herbs are **not** included in any WIC food package. Allowed herbs are listed below:

- | | | |
|-------------|----------------|------------------|
| • Basil. | • Garlic. | • Parsley. |
| • Bay Leaf. | • Ginger Root. | • Rosemary. |
| • Chives. | • Lemon Grass. | • Sage. |
| • Cilantro. | • Marjoram. | • Thyme. |
| • Dill. | • Mint. | • Tarragon. |
| • Fennel. | • Oregano. | • Turmeric Root. |

High-Risk Vendor: Vendor who has been flagged by criteria used by the WIC Program to detect abuse. High-risk are prioritized for investigation.

Identical Authorized Supplemental Food Item: A food item that is the exact brand and size as the original authorized supplemental food item obtained and returned by the participant.

Inadequate Participant Access: A hardship on WIC participants that limits their access to an authorized vendor. A situation where WIC participants would be adversely affected by an action such as disqualification of a vendor, non-authorization, etc.

Infant Formula: A food that meets the definition of an infant formula in section 201(z) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(z)) and that meets the requirements for an infant formula under section 412 of the Federal, Food, Drug, and Cosmetic Act (21 U.S.C. 350a) and the regulations at 21 CFR parts 106 and 107.

- **Rebate Program:** COWIC participates in an infant formula rebate program with a specific formula manufacturer. The manufacturer agrees to pay a rebate based on the number of containers of contract formula purchased by WIC. COWIC will notify vendors of contract changes.
- **No Substitution:** Formula prescribed to the participant is the ONLY brand and size of formula they may purchase. The system will only allow the prescribed item to be purchased with WIC. Formula is an integral part of a baby's diet and is chosen for specific dietary needs.
- **Special Formulas May Be Requested:** Special formulas (non-contract formulas) that are prescribed by a physician are also provided by WIC. Vendors and/or pharmacies may be requested (though not required) to order special formulas when necessary.
- **Authorized Sources:** To ensure the integrity of the product, vendors are required to purchase infant formula from approved suppliers (i.e., approved wholesalers, distributors and vendors licensed in Colorado and through manufacturers registered with the Food and Drug Administration (FDA) that provide infant formula). A list of authorized formula sources is located at: www.ColoradoWIC.gov/apply-be-wic-store.
- **"Use by" Date:** Regulations administered by the FDA require that a "use by" date be declared on each container of infant formula. An infant formula that has passed its "use by" date may not provide the nutrient levels required under the Federal Food, Drug and Cosmetic Act. Therefore, a vendor shall not offer for sale any infant formula that is past its "use by" date.

Infants: Individuals under one year of age.

Inventory Records: Up-to-date records that are required for tax purposes and that include records on purchases, receipts and inventory.

Inventory Audit: The examination of food inventory invoices or other proof of purchase to determine whether a vendor has purchased sufficient quantities of supplemental foods to provide participants the quantities reported as redeemed by the vendor during a given period of time.

Investigation: An administrative review, compliance buy, inventory audit, and/or coordinated efforts with SNAP to determine whether violations are occurring or have occurred.

Lack of Business Integrity: Activities indicating a lack of business integrity include fraud, antitrust violations, embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, receiving stolen property, making false claims, and obstruction of justice.

Local Agency Retailer Coordinator (LARC): Staff from the Local WIC Agency located within the vendor's service area. Specific roles and responsibilities are listed in Section VI.

Local WIC Agency: A) A public or private, nonprofit health or human service agency that provides WIC services through contract with the Program; or B) Intertribal council or group that is an authorized representative of Indian tribes, bands or groups recognized by the Department of the Interior, which operates a local WIC clinic.

Logo/Acronym: Use of acronym "WIC" and WIC logo, in total or in part, is reserved for official use of the Program.

- Vendors are not permitted to use the WIC acronym, or close facsimiles, in the name of the vendor.
- Vendors are permitted to display signs notifying the public of COWIC authorization that are provided by COWIC.
- WIC-authorized vendors are restricted from using the WIC acronym in advertising and other promotional activity without the consent of COWIC.
- Vendors are not allowed to use the WIC logo in advertising or other promotional activity.

Vendors may not apply stickers, tags or labels that have the service mark on WIC-approved items.

Military Commissary: Department of Defense-established retail outlet for the sole use of active and retired military personnel and their dependents.

Minimum WIC Foods Stocking Requirements: The minimum quantities and varieties of approved foods and/or infant formulas a grocery store is required to keep in the customer area as specified in this Handbook.

Not-to-Exceed (NTE): The maximum price for individual food items/peer groups.

Nutrition Education: Individual or group education sessions and the provision of information and educational materials designed to improve health status, achieve positive change in dietary habits, and emphasize relationships between nutrition and health, all in keeping with the individual's personal, cultural and socio-economic preferences.

Nutritional Risk: A) Detrimental or abnormal nutritional conditions detectable by biochemical or anthropometric measurements, (B) Other documented nutritionally-related medical conditions, (C) Dietary deficiencies that impair or endanger health, or (D) Conditions that predispose persons to inadequate nutritional patterns or nutritionally related, medically-related conditions.

Overcharge: Intentionally or unintentionally charging the Program more for approved supplemental foods than is permitted under the Vendor Agreement and/or intentionally or unintentionally charging participants more than non-WIC customers or more than the posted shelf prices.

Participant(s): Pregnant women, breastfeeding women, postpartum women, infants and children who are receiving WIC benefits. As referenced in this Handbook, may also include parents or caregivers of infant and child participants (endorsers), proxies or alternate shoppers.

Participant Access: Participant access determinations are at the Program's discretion and are not subject to administrative review. The Program must include documentation of its participant access determination and any supporting documentation in the file of each vendor who is disqualified or receives a CMP in lieu of disqualification.

When making the determination of participant access, the Program considers indicators of food access in the area the store is located, such as:

- Accessibility to sources of healthy food, as measured by distance to a WIC-authorized store or by the number of WIC-authorized stores in an area.
- Individual-level resources that may affect accessibility, such as nationality, ethnicity or religious dietary needs, refugee status, family income, language, or vehicle availability.
- Neighborhood-level indicators of resources, such as the average income of the neighborhood and the availability of and proximity to public transportation, family shelters, or transitional housing.
- Geographic barriers that would significantly restrict participants' access to using other authorized vendors operating in the area.

Participant access will be determined as adequate when there is an adequate number of authorized vendors operating in the area to meet participant demand and accessibility.

Pattern: Regarding federally mandated violations/sanctions requiring a pattern: 1) three or more incidences of a violation that occur during any two-year period, 2) three or more failed compliance buys during an investigation (failed buys before notification to the vendor may count as one), or 3) one or more instances of violations during an inventory audit.

Peer Group: Federal regulations (7 CFR Part 246) require WIC agencies to implement a vendor peer group system (i.e., grouping similar stores together), competitive price criteria, and allowable reimbursement levels to ensure that WIC pays authorized vendors competitive prices. A vendor is assigned a peer group based on criteria that classifies the store type (i.e., supermarket, small grocery, supercenter, pharmacy, commissary, or farmer), geographic area and number of WIC-authorized stores owned and operated in Colorado (i.e., Minor= <30 or Major= ≥30). COWIC may change a vendor's peer group whenever it determines that placement in an alternate peer group is warranted. WIC programs must use these criteria to evaluate prices and authorization.

Pharmacy: An establishment issued a license to operate as a pharmacy under Colorado laws, whose business is to provide pharmaceutical products and nutritional supplements.

Point-of-Sale (POS) device: The equipment used to ring up food items in a grocery store or other vendor.

Postpartum Women: Women within the period after the end of a pregnancy (eligible for COWIC Program benefits for up to six months and extended to one year if breastfeeding).

Poverty Income Guidelines: The poverty income guidelines prescribed by the Federal Department of Health and Human Services, with each annual adjustment effective July 1, used to determine Program eligibility.

Price Look-Up (PLU): A 4-or 5-digit number defined by the International Federation for Product Standards (IFPS) used to identify products that are typically of variable measure.

Program: The Special Supplemental Nutrition Program for Women, Infants and Children (WIC) authorized by section 17 of the Child Nutrition Act of 1966, as amended.) In Colorado, the Program is also referred to as COWIC and Colorado WIC. Located in and regulated by the United States Department of Agriculture Food and Nutrition Service.

Program Abuse: A pattern of violations of Program policies and procedures as outlined in this Handbook.

Rebate: Money refunded under cost-containment procedures to the Program from manufacturers.

Receipt: Documentation that delineates the items purchased and the price paid for items, including discounts and other adjustments. (Also referred to as purchase receipts.)

Vendors shall provide the eWIC cardholder with a receipt which, at a minimum, shows the store name and address, the date of the transaction, product(s) purchased, price charged for each purchase, and the remaining balance of available benefits. In accordance with EBT Operating Rule 5.5.2 WIC Purchase receipt data, a WIC Purchase receipt [which may be separate or included in the WIC Vendor's sales receipt] shall include the following data:

- A. Last four digits of the card number of the Primary Account Number (PAN) only. All other digits shall not be displayed in the clear nor printed on the receipt.
- B. Store name. The generally accepted name for the location or one consistent with the WIC application to become an authorized WIC Vendor with a specific WIC State Agency.
- C. Store street address, city, state abbreviation and zip code.
- D. Local date and time of purchase.
- E. WIC food item identifier (if a separate WIC Purchase receipt is not provided).
- F. Benefit expiration date and time.
- G. Purchased food items including the food item quantity, description and unit of measure.
- H. Unit cost.
- I. Total purchase amount.
- J. Benefits remaining, including the benefit description, quantity and unit of measure.
- K. Unique transaction identifier or systems trace audit number.

Role of COWIC and LARC:

Statewide Roles of the COWIC Benefit Delivery Unit (at CDPHE)

- Working with vendors and LARC to foster positive working relationships.
- Developing, implementing and enforcing procedures to ensure Program integrity.
- Providing vendors and LARC with support and information; answering questions about the Food List, etc.
- Providing guidance for LARC on enforcing policies and procedures.
- Coordination of vendor Agreements and applications; authorizing and reauthorizing vendors to participate in COWIC.
- Providing training for local agency WIC staff and vendors.
- Working with LARC and vendors to resolve ongoing problems.
- Facilitating communication between state staff and WIC local agencies regarding vendor issues.
- Enforcing federal regulations and initiating actions for sanctions against vendors who are in violation of COWIC's policies and procedures.
- Providing general oversight of the vendor component of COWIC.
- Implement cost containment processes.

Role of the Local Agency Retail Coordinator (LARC)

- Conducting pre-authorization and orientation reviews.
- Providing training for vendors and WIC educators.
- Working with store personnel to handle questions about the Food List, obtaining special formulas, ensuring minimum stocking requirements are met and resolving ongoing vendor issues.
- Conducting site visits and monitoring visits.
- Responding to participant/vendor complaints and forwarding copies to the COWIC Benefit Delivery Unit.
- Reporting ongoing or serious vendor problems to the COWIC Benefit Delivery Unit for follow up.
- Working with the COWIC Benefit Delivery Unit and Local Agency Director to develop procedures that address vendor problems.
- Enforcing federal and state regulations, policies and procedures.
- Communicating policy and procedural changes to vendors.
- Participating in LARC conference calls to facilitate communication between state staff and WIC local agencies regarding vendor issues.
- Recommending investigations against vendors who are in violation of COWIC.
- Providing general oversight of vendors within the service area.
- Assisting with disqualification/sanction implementation including, but not limited to, providing written documentation supporting the case against the vendor, testifying at Fair Hearing Procedures, etc.
- Working with COWIC Benefit Delivery Unit on recommendations on vendor related policy.

Routine Monitoring: Overt, on-site monitoring during which Program representatives identify themselves to retail personnel. May include an educational buy.

Sanctions: Administrative action taken against a vendor as a result of a violation of the Program's policies and procedures including, but not limited to, corrective action plans, mandatory training, non-payment of WIC transactions, disqualification and civil money penalty.

Selection Criteria: The criteria established by the Program to select individual vendors for authorization.

"Sell by": Date limiting the sale or use of the food item as provided for in the [Federal Food Drug and Cosmetic Act](#).

Shelf Price: Non-sale price of the food item as marked on the shelf or item.

Signature (on Vendor Agreement): The Colorado WIC Vendor Agreement may be executed in counterparts or with signatures obtained via facsimile or scan and electronic mail transmission, each of which have full force and effect upon execution by all parties to this Agreement. Scanned or faxed copies of signatures on the agreement are accepted by COWIC.

Stand-Beside Point-of-Sale Device: Point-of-sale (POS) device that is directly connected to the eWIC contractor for vendors that are not running an integrated point-of-sale (POS) system.

Standard Formula: Formulas items provided by WIC unless a physician diagnoses a medical condition that warrants a specialty formula.

State Agency: WIC funds are made available to state and Indian tribal agencies to administer WIC across the country. The Colorado Department of Public Health and Environment (CDPHE) is the state agency in Colorado that administers COWIC.

State Vendor Coordination Unit: WIC staff located at the state level responsible for the overall management and the day-to-day vendor coordination activities. Specific roles and responsibilities are listed in Section VI. (Also referred to as the COWIC Vendor Coordination Unit or Benefit Delivery Unit.)

Store/Store Location: The authorized selling location(s) of a grocer as indicated by the store name and/or store number or a farm (i.e., farm stand, booth at farmer's market).

Supplemental Nutrition Assistance Program (SNAP): Supplemental Nutrition Assistance Program (SNAP), formerly known as the Food Stamp Program, and sometimes referred to as "EBT."

SNAP Vendor Identifiers: Criteria Store Type: Supplemental Nutrition Assistance Program (SNAP) assigns designations such as criteria and store type to vendors applying for SNAP. These identifiers are assigned based on the Vendor's total sales, food and staple food sales and stock and type of foods (e.g., staple, perishable and product type), etc.

Supplemental Foods: Foods containing nutrients determined to be beneficial for pregnant, breastfeeding, and postpartum women, infants and children prescribed by the Program.

Third Party Processor (TPP): An intermediary that processes the electronic transactions and payments to the vendor.

Trafficking: The illegal exchange of WIC benefits for cash.

Training/WIC Training: Each vendor employee involved with WIC transactions (including managers) should receive WIC training. WIC training is designed to prevent Program errors and noncompliance and improve Program service as well as increase cashier confidence and proficiency.

At a minimum the following topics must be covered by COWIC during annual WIC training:

- Purpose of WIC and WIC food packages.
- Approved WIC foods.
- WIC policies and procedures (including minimum variety and quantity of foods that must be stocked; required sources of infant formula and use of incentive items).
- eWIC transaction and redemption procedures.
- Noncompliance point system and sanctions for noncompliance (from non-payment of WIC purchases to disqualification).
- Vendor complaint process and how to handle special circumstances.
- Claims procedure.
- Changes to WIC.

Transaction Date: The date a shopper purchases items at a vendor using an eWIC card.

Universal Product Code (UPC): A specific type of barcode used to identify products sold by the WIC vendor. Approved WIC food item codes are entered on the APL file.

Unauthorized Channel: Vendors or individuals who are not authorized to accept WIC transactions. An example of accepting eWIC cards outside authorized channels may be a vendor who owns more than one store, some of which are not authorized, accepting WIC eWIC cards at an unauthorized store and redeeming through an authorized store

“Use By” Date: Date limiting sale or use of a food item as provided for in the [Federal Food Drug and Cosmetic Act](#).

Urban Area: COWIC utilizes Rural Urban Commuting Area (RUCA) codes to categorize vendors based on geography. There are 10 RUCA codes, which are typically collapsed into four main categories: urban (RUCA codes 1-3), large rural (RUCA codes 4-6), small rural (RUCA codes 7-9), and isolated (RUCA code 10).

Vendor: A vendor that enters into an agreement with COWIC (via the Colorado WIC Vendor Agreement); a grocery store, commissary, farmer or pharmacy in a fixed and permanent location authorized by the Program, by signed agreement, to sell approved foods and/or infant formulas to participants. Also referred to as vendors.

Vendor Agreement: A signed Colorado WIC Vendor Agreement that authorizes vendors to conduct WIC transactions from participants of the Program (WIC shoppers) in accordance with the Program's policies and procedures. By reference the WIC Handbook is made part of the Vendor Agreement and the policies and procedures outlined in this Handbook are an integral part of the Vendor Agreement. The Vendor Agreement, Vendor Handbook, federal regulations and policy letters outline policies and procedures that must be met by authorized vendors.

Vendor Authorization: The process, by which the Program assesses, selects and enters into agreements with vendors that apply or subsequently reapply to be authorized as vendors.

Vendor WIC ID Number: The unique and individual 3- or 4-digit numeric code assigned to each vendor by COWIC for identification purposes. A vendor must have a number assigned prior to accepting eWIC benefits.

Violation: Any intentional or unintentional actions of a vendor, owner, agents, officers, managers or employees (with or without the knowledge of management) which violate the Program's policies and procedures, Vendor Agreement, federal or state statutes, and/or regulations governing the Program.

WIC Handbook: The Colorado WIC Vendor Handbook is a publication developed by the Program that describes the policies and procedures for WIC-authorized vendors and is an integral part of the Vendor Agreement. Also referred to as the WIC Handbook and Handbook.

WIC Shopper: The participant or any person designated by a participant, or by a parent or caregiver of an infant or child participant, to obtain an eWIC card and corresponding PIN, or to obtain supplemental foods on behalf of a participant.

WIC Manual: The Colorado WIC Vendor Manual is a notebook provided to all authorized WIC vendors by the Program. Commonly referred to as the WIC Manual. The WIC Manual must be maintained on site, either paper or electronically, for the duration of the Vendor Agreement and should include this Handbook, Vendor Agreement, WIC'S WORLD newsletters, policy letters and training documentation.

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EXHIBIT A. COLORADO WIC PROGRAM TRAINING DOCUMENTATION FOR WIC VENDORS

Store Name and #: _____ WIC Vendor ID #: _____

Address: _____

My signature below verifies that I have attended a WIC vendor training session (e.g., Initial Cashier Training, Required Success Training, etc.) and/or watched the COWIC training video. Topics include:

- Purpose of WIC and WIC food packages.
- Allowable WIC foods.
- Program policies and procedures (including minimum variety and quantity of foods that must be stocked, required sources of formula and use of incentive items).
- WIC transactions and WIC benefit redemption procedures (including the steps in a WIC purchase).
- Vendor noncompliance point system and sanctions for noncompliance (from non-payment to disqualification).
- Vendor compliance process and how to handle special circumstances.
- Claims procedures.
- Changes to the WIC Program.

As an employee at a WIC-approved store, I understand the importance of accepting and processing eWIC cards correctly to ensure that our store is paid and WIC shoppers receive only the nutritious foods that are prescribed for them. Refer to your WIC Handbook or call your local WIC clinic with questions and/or input.

Print Name	Title	Signature	Date

Please note: This document must be maintained in the store's WIC Manual (unless previously approved). All store employees involved in WIC transactions, including store management, must be trained and listed on this form.

Training Documentation for WIC Vendors:

Print Name	Title	Signature	Date

EXHIBIT B. COLORADO WIC PROGRAM PRICE LIST

WIC Vendor ID # (if applicable):	Store Name and #:	Date:
Contact Name:		Phone #:

Instructions:

- * Please enter the HIGHEST cost WIC ALLOWED item that your store stocks.
- * Please remember to enter correct contact information and date and be sure to sign the next page.

I. Required WIC Stock

Food Item	Brand Name (Or Notes)	Size	Price
Baby Food - Fruit and Vegetables		1 Jar (4 oz.)	\$
Bread, Rolls, or Buns -Fill in the number of ounces.		oz.	\$
Cheese		Pound	\$
Eggs		1 Dozen	\$
100% Juice		64 oz.	\$
Legumes - Peanut Butter		1 Jar (16-18 oz.)	\$
Milk - Low-Fat/Skim		1 Gallon	\$
Milk - Whole		1 Gallon	\$
Standard Infant Formula -Fill in size			\$
Yogurt		1 Quart	\$



II. Signatures

I certify the above information is true and correct.

WIC ID or Store Name: _____

Signature: _____

Choose the most convenient option to submit:

MAIL: Colorado Department of Public Health and Environment
Nutrition Services - WIC Program PSD-CAC-7420;
4300 Cherry Creek Drive South
Denver, CO 80246-1530

FAX: (303) 756-9926 (Attention: Benefit Delivery Unit)

EMAIL: scanned or digital copy to cdphe_askwic@state.co.us

Excel spreadsheet can be requested at cdphe_askwic@state.co.us

EXHIBIT C. COLORADO WIC PROGRAM FORMULA/PHARMACY PRICE LIST

WIC ID #: _____ Pharmacy/Store Name and #: _____

Name: _____ Phone #: _____ Date: _____

Formula Name	Type	Description	UPC	Price per unit (Including Shipping)
Alfamino Infant	PWD	14.1 OZ CAN	07613034788214	
Alfamino Junior Unflavored	PWD	14.1 OZ CAN	07613034787958	
Boost High Protein Vanilla	RTF	6-PACK	041679941669	
Boost Kids Essentials 1.5 Vanilla	RTF	8 OZ CONTAINER	00043900335407	
Boost Kids Essentials 1.5 WITH FIBER	RTF	8 OZ CONTAINER	00043900335001	
Compleat Pediatric	RTF	8.45 OZ CONTAINER	043900142401	
Elecare Infant	PWD	14.1 OZ CAN	070074535111	
Elecare Junior Vanilla	PWD	14.1 OZ CAN	070074565866	
Enfamil Neuropro Enfacare	PWD	13.6 OZ CAN	300875122082	
Ensure Plus Vanilla 6-Pack	RTF	6-PACK	070074407074	
Ensure Vanilla	RTF	6-PACK	070074407111	
Kate Farms Pediatric Peptide 1.5 Vanilla	RTF	8.45 OZ CONTAINER	851823006874	
Kate Farms Pediatric Standard 1.2 Vanilla	RTF	8.45 OZ CONTAINER	851823006904	
Neocate Infant	PWD	14.1 OZ CAN	749735025956	
Neocate Junior Unflavored	PWD	14.1 OZ CAN	749735017906	
Neocate Junior with Prebiotics Vanilla	PWD	14.1 OZ CAN	749735006276	

Formula Name	Type	Description	UPC	Price per unit (Including Shipping)
Neocate Splash Tropical Fruit	RTF	Case (27 count of 8 OZ containers)	749735124376	
Neocate Syneo Infant	PWD	14.1 OZ CAN	749735014363	
Neocate Syneo Junior	PWD	14.1 OZ CAN	749735100998	
Nestle Extensive HA	PWD	14.1 OZ CAN	050000598526	
Nutramigen RTF	RTF	32 OZ BOTTLE	300875115640	
Nutramigen with Enflora LGG Powder	PWD	12.6 OZ CAN	300871239418	
Enfamil Neuropro Enfacare	PWD	13.6 OZ CAN	300875122082	
Ensure Plus Vanilla	RTF	6-PACK	070074407074	
Enure Vanilla 6-pack	RTF	6-PACK	070074407111	
Kate Farms Pediatric Peptide 1.5 Vanilla	RTF	8.45 OZ CONTAINER	851823006874	
Kate Farms Pediatric Standard 1.2 Vanilla	RTF	8.45 OZ CONTAINER	851823006904	
Neocate Infant	PWD	14.1 OZ CAN	749735025956	
Neocate Junior Unflavored	PWD	14.1 OZ CAN	749735017906	
Neocate Junior with Prebiotics Vanilla	PWD	14.1 OZ CAN	749735006276	
Neocate Splash Tropical Fruit	RTF	Case (27 count of 8 OZ containers)	749735124376	
Neocate Syneo Infant	PWD	14.1 OZ CAN	749735014363	
Neocate Syneo Junior	PWD	14.1 OZ CAN	749735100998	
Nestle Extensive HA	PWD	14.1 OZ CAN	050000598526	
Nutramigen RTF	RTF	32 OZ BOTTLE	300875115640	

Formula Name	Type	Description	UPC	Price per unit (Including Shipping)
Nutramigen with Enflora LGG Powder	PWD	12.6 OZ CAN	300871239418	
Nutren Junior	RTF	8.45 OZ CONTAINER	798716060622	
Nutren Junior with prebio fiber	RTF	8.45 OZ CONTAINER	798716060639	
Pediasure 1.5 cal Vanilla	RTF	8 OZ CONTAINER	070074673868	
Pediasure 1.5 cal with fiber Vanilla	RTF	8 OZ CONTAINER	070074673752	
Pediasure Vanilla	RTF	6-PACK	070074580500	
Pediasure with fiber Vanilla	RTF	6-PACK	070074580623	
Peptamen	RTF	8.45 OZ CONTAINER	798716062695	
Peptamen Junior	RTF	8.45 OZ CONTAINER	798716062534	
Peptamen with prebio fiber	RTF	8.45 OZ CONTAINER	798716181853	
PurAmino	PWD	14.1 OZ CAN	300875104804	
Ross Carbohydrate Free (RDF)	CONC	13 OZ CONTAINER	070074401089	
Similac Alimentum	PWD	12.1 OZ CAN	070074647128	
Similac Human Milk Fortifier Hydrolyzed Protein CL	RTF	BOX	070074630113	
Similac Neosure	PWD	13.1 OZ	070074574318	
Similac Neosure	RTF	32 OZ CONTAINER	070074574561	
SIMILAC PM 60/40	PWD	14.1 OZ CAN	070074608501	



II. Signatures

I certify the above information is true and correct.

WIC ID or Store Name: _____

Signature: _____

Choose the most convenient option to submit:

MAIL: Colorado Department of Public Health and Environment
Nutrition Services - WIC Program PSD-CAC-7420;
4300 Cherry Creek Drive South
Denver, CO 80246-1530

FAX: (303) 756-9926 (Attention: Benefit Delivery Unit)

EMAIL: scanned or digital copy to cdphe_askwic@state.co.us

Excel spreadsheet can be requested at cdphe_askwic@state.co.us



EXHIBIT D. COLORADO WIC PROGRAM MINIMUM STOCKING WAIVER

Store Name: _____ WIC Vendor ID#: _____

Address: _____

Item(s) Description:

Upon request by a WIC participant and/or WIC staff, the item will be made available within 24-72 hours of the request. Once the request has been made this waiver becomes suspended.

Store Manager Signature:

_____ Date: _____

Local Agency WIC Staff Signature:

_____ Date: _____

Colorado Benefit Delivery Unit Representative Signature:

_____ Date: _____



EXHIBIT E. COLORADO WIC PROGRAM VENDOR AGREEMENT

Colorado Department of Public Health and Environment (CDPHE)

Colorado Special Supplemental Nutrition Program for Women, Infants and Children (WIC)

Store Name: _____

(For COWIC Use Only – WIC Vendor ID#): _____

This Vendor Agreement 2025-2028 ("Agreement") is made by and between the State of Colorado, acting by and through Colorado WIC (COWIC), the Colorado Department of Public Health and Environment, Prevention Services Division, whose address and principal place of business is 4300 Cherry Creek Drive South, Denver, Colorado 80246, and the entity named below, hereinafter referred to as the "Vendor."

Legal name of entity

Principal place of business—street address, city, state and zip code

Agreement effective, unless otherwise terminated, until: **September 30, 2028.**

PURPOSE

This document, upon signature by the vendor and Colorado WIC (COWIC), is an agreement for the purpose of providing an authorized source from which qualifying women, infants and children can obtain nutritious supplemental foods in accordance with the rules, regulations and policies of the Special Supplemental Nutrition Program for Women, Infants and Children established by the Food and Nutrition Service (FNS), United States Department of Agriculture (USDA) and the Colorado Department of Public Health and Environment (CDPHE).

FACTUAL RECITALS

SECTION I: PARTNERING WITH THE PROGRAM

1. This Agreement authorizes the above-named vendor to accept WIC food instruments issued by the Colorado Special Supplemental Nutrition Program for Women, Infants and Children (WIC) (hereinafter referred to as the Program and COWIC).
2. The vendor shall comply with all applicable federal regulations contained in the Federal Register, 7 C.F.R. Part 246, and Program policies and procedures which are contained in the current version of the Colorado WIC vendor Handbook (Handbook). This Handbook, and all relevant policy letters issued by the Program, are incorporated herein by this reference and made part hereof.
3. The vendor agrees to remain in compliance with the authorization selection criteria as outlined in the Handbook throughout the term of this Agreement.
4. The vendor, or an authorized representative of the vendor, shall participate in training sessions offered by the Program on its policies and procedures. Annual vendor training may be provided by the Program in a variety of formats, including newsletters, videos, and interactive training. Interactive training shall be conducted at least once during the term of this Agreement. The Program shall have sole discretion to designate the date, time and location of all interactive training, except that the Program shall provide the

vendor with at least one alternative date on which to attend this interactive training. The vendor is responsible for training cashiers on how to correctly process WIC-authorized transactions. The vendor shall provide all affected employees with any new information it receives from the Program. The vendor is ultimately liable for the actions of its owners, officers, managers, agents and employees with respect to WIC-authorized transactions.

5. The vendor shall provide valid contact information, including a working email address via which they agree to receive notifications from the Program.
6. The vendor shall provide time to federal, state or local agency representatives for periodic, announced and unannounced visits to determine its compliance with federal or state rules, regulations, policies and procedures of the Program. The vendor shall provide access to its shelf price and transaction records in its possession at the time of the visit upon request.
7. The vendor shall maintain inventory records used for federal tax reporting purposes and other records the Program may require for the time period covered by this Agreement. Upon request, the vendor shall make available to representatives of the Program, the Department, and the Comptroller General of the United States, at any reasonable times and places for inspection and audits, Program-related records.
8. The vendor shall accept WIC transactions using the procedures outlined in the Handbook, including those listed below:
 - a. The vendor shall accept payment based on the vendor's peer group (i.e., like stores in the same geographical type area) price levels.
 - b. The vendor shall provide WIC-authorized foods to a WIC participant at the same price charged to a non-WIC participant.
 - c. The vendor shall not apply tax of any kind to authorized foods purchased with a WIC food instrument.
 - d. The vendor shall not provide unauthorized food items, non-food items, cash or credit (including rain checks) in exchange for a WIC food instrument.
 - e. The vendor shall not provide refunds or permit exchanges for authorized supplemental foods obtained with a WIC food instrument, except for exchanges of an identical authorized supplemental food item when the original authorized supplemental food item is defective, recalled, spoiled, or has exceeded its "sell by," "best if used by," or other date limiting the sale or use of the food item.
 - f. As described in the 7 CFR 246 and the Handbook, all sanctions for WIC Program fraud and abuse and penalties apply to eWIC cards and are interchangeable with all references to WIC food instruments and benefits.
9. The vendor shall notify the Program at least 30 calendar days in advance of the date it intends to cease operations or change location or ownership. This Agreement is null and void upon the effective date of a change of ownership.
10. The vendor shall have approval to redeem SNAP benefits (unless approved by the Program for a waiver), is in good standing with the USDA Food and Nutrition Service, shall be licensed as a Retail Food Establishment and shall comply with the Colorado Retail Food Establishments Rules and Regulations as in effect on January 1, 2020, or as amended and revised.
11. The vendor shall not discriminate against a WIC participant on the basis of race, color, national origin, sex, age or disability. The vendor shall offer WIC participants the same courtesies as those offered to non-WIC participants.
12. The vendor shall not attempt to seek additional reimbursement from a WIC participant under any

circumstances in connection with a WIC transaction.

13. The Program may issue a claim and bill the vendor for payments it has already made to the vendor in error, or upon detection of a Program violation. Vendors have 30 calendar days to pay the claim. Failure to pay the claim shall result in future payments being withheld to offset the claim.
14. The vendor is responsible for fees, including but not limited to interchange fees, its bank or point-of-sale processor and/or provider may charge.
15. The vendor shall submit price lists as requested by the Program.
16. If the vendor fails to comply with the Program requirements, as defined in the Handbook, applicable federal regulations, and this Agreement, including any changes made by policy letter, then the vendor may be disqualified from further participation in the Program, may be required to pay a civil money penalty (CMP), may be required to participate in mandatory remedial training, may be required to submit a corrective action plan, or may be denied payment by the Program.
17. If the Program disqualifies or imposes a CMP against the vendor then the vendor may also be disqualified from participation in the Supplemental Nutrition Assistance Program (SNAP), which is administered by the USDA, for an equal period of time. A reciprocal disqualification from SNAP, based on a disqualification by the Program, is not subject to administrative appeal to SNAP or judicial review.
18. If the vendor is disqualified from SNAP because of a failure to comply with the requirements of that program, then the vendor shall also be disqualified from this Program. The reciprocal Program disqualification shall be for an equal period of time as the SNAP disqualification. However, the Program period of disqualification may begin at the same time as the SNAP period of disqualification or on a later date than the SNAP disqualification. If a potential disqualification of the vendor from the Program is based on a SNAP disqualification, but would result in inadequate WIC participant access in the service area of the vendor, then the Program shall not disqualify the vendor but may impose a CMP in lieu of disqualification. Subsequent sanctions may result in disqualification. A reciprocal disqualification by the Program, based on a SNAP disqualification, is not subject to administrative appeal to the WIC Program or judicial review.
19. If SNAP assesses a CMP against the vendor, instead of disqualification, to avoid creating inadequate SNAP participant access in the service area of the vendor, then the Program may disqualify the vendor from participation in its Program. If the vendor is disqualified from the Program because of the imposition of a CMP by SNAP, then the vendor may file an administrative appeal with the Program of that disqualification.
20. The Program shall immediately terminate this Agreement if it determines that the vendor has provided false information in connection with its application for authorization.
21. The Program may impose a sanction of disqualification and/or the imposition of a CMP against the vendor only after the Program has given the vendor 15 calendar days' advance written notice of its intent to impose a sanction. In deciding whether or not to postpone the imposition of a sanction until a hearing decision has been rendered, the Program shall determine whether inadequate WIC participant access would result from the imposition of its proposed sanction. The Program is not required to give the above-referenced notice to the vendor if the sanction is based on the conviction of the vendor for: buying or selling a WIC food instrument (trafficking); or selling firearms, ammunition, explosives or controlled substances in exchange for a WIC food instrument. The effective date of the WIC Program sanction shall be the date the vendor receives written notice of that sanction. The Program will notify a vendor in writing of an initial violation for which a pattern is required to sanction; unless it is determined that notification would compromise an investigation. Refer to the Handbook for a listing of vendor sanctions.

22. The Program shall terminate this Agreement if the Program identifies a conflict of interest, as defined by applicable state laws, regulations and policies between the vendor and the Program or its local agencies.
23. A vendor who commits fraud or abuse in the Program is liable for prosecution under applicable federal, state or local laws. Anyone who willfully misapplies, steals or fraudulently obtains Program funds shall be subject to a fine of not more than \$25,000 or imprisonment for not more than five years or both, if the value of the funds is \$100 or more. If the value is less than \$100, the penalties are a fine of no more than \$1,000 or imprisonment for not more than one year, or both.
24. This Agreement does not constitute a license or a property interest. If the vendor wishes to continue to be authorized beyond the term of the current Agreement, then the vendor must apply for reauthorization. If the vendor is disqualified, then the Program may terminate this Agreement. If this Agreement is terminated, then the vendor must reapply in order to be authorized after the disqualification period expires. In all cases, the vendor's new application shall be subject to the Program's authorization criteria in effect at the time of the reapplication. Neither the Program nor the vendor has an obligation to renew this Agreement. Expiration of this Agreement shall not be subject to appeal or administrative review.
25. The vendor has the right to appeal, through a fair hearing process, a Program decision which denies an application of the vendor to participate in the Program or disqualifies the vendor from participation in the Program. The expiration or non-renewal of this Agreement is not subject to administrative appeal or judicial review. If a hearing has been scheduled, then the vendor shall have one opportunity to reschedule the hearing date upon written request to the Program. (Administrative review procedures and actions subject to review are provided in the Handbook.)
26. The Program may terminate this Agreement by providing the vendor with 15 calendar days advance written notice of its intent to terminate. The vendor may terminate this Agreement by providing 30 calendar days advance written notice of its intent to terminate. The parties shall not be released from their respective duties to perform their obligations until the effective date of termination has passed.
27. Additional causes for agreement termination:
 - a. The COWIC Office may send a warning letter to the vendor, require training for designated personnel, require implementation of a corrective action plan, require payment of a forfeiture, require recoupment, terminate the vendor for no more than one year
 - i. Fail to maintain a current Food Dealers or Pharmacy License.
 - ii. Fail to notify the COWIC Vendor Unit of any civil judgement or criminal convictions.
 - iii. Fail to pay child support, taxes and money judgments.
28. When a store location is currently involved in the audit process or has been sanctioned by WIC or SNAP and is in the appeal process, authorization of a new owner may be denied at this location until completion of the audit or appeal decision is rendered.
29. Vendors authorized as pharmacies agree not to provide standard infant formula unless by request from the Program.
30. Vendor understands not to provide incentive items or other free merchandise, except food or merchandise of nominal values (defined as less than \$2.00 by USDA), to Program participants unless the vendor provides to the COWIC Service proof that the vendor obtained the incentive items or merchandise at no cost. Vendors must get prior approval from COWIC for any and all incentive items or other free merchandise. Vendors must provide these same incentives to all non-WIC customers as well.
31. This Agreement is effective as of the date the last party signs it and shall remain in effect, unless otherwise terminated, until **September 30, 2028**.

SECTION II: EWIC DEFINITION

1. Approved Product List (APL) – Electronic files identifying WIC food items authorized by COWIC for purchase with WIC benefits.
2. Cash Value Benefit (CVB) – A fixed-dollar amount associated with the eWIC card used by a cardholder to obtain authorized fruits and vegetables.
3. Electronic Cash Register (ECR) - A type of cash register used by vendors with an integrated system to accept eWIC transactions.
4. eWIC Cardholder - An authorized person (i.e., participant, parent, legal guardian, caretaker, proxy) in possession of an eWIC benefit card. This eWIC benefit card and Personal Identification Number (PIN) allows the cardholder to purchase approved food items prescribed to one or more participants assigned to a family's account.
5. eWIC Contractor - EBT contractor hired by WIC.
6. eWIC Transaction - An on-line, real time payment method that electronically pays authorized vendors for food items purchased by an eWIC cardholder. An eWIC card is issued by COWIC to each eligible family account. The eWIC card is used by the eWIC cardholder to purchase approved foods at authorized vendor locations.
7. Personal Identification Number (PIN) - A secret identification number selected by the eWIC cardholder to access their WIC benefits.
8. Price Look-Up (PLU) – A four (4) or five (5)-digit number defined by the International Federation for Produce Standards (IFPS) used to identify products that typically are of variable measure.
9. Universal Product Code (UPC) – A specific type of barcode used to identify products sold by vendors. Approved WIC food item UPC are entered on the APL file.
10. Balance Inquiry (BI) – A shopping list and/or to the balance of the items in the eWIC benefit balance provided to WIC shoppers prior to beginning a purchase.
11. Void - The cancellation of a transaction (before the entire transaction has been completed). A voided transaction shall not be used to return or provide credit for WIC foods.
12. Reversal – To partially or completely nullify the effects of a previous purchase transaction and add benefits back to the WIC prescription benefit because the transaction cannot be processed as instructed.
13. Food instrument - The instrument used by the WIC Program to conduct WIC transactions (e.g., eWIC cards).
14. Vendor – WIC authorized vendors include: grocers, commissaries, farms, and pharmacy warehouses and home delivery contractors.

SECTION III: EWIC PROCESSING REQUIREMENTS

The vendor shall demonstrate its capability to accept WIC benefits electronically (i.e., the vendor has an Electronic Benefit Transfer (EBT) capable register system) prior to authorization and shall comply with WIC EBT operating rules, standards and technical requirements including those in the Technical Implementation Guide

(TIG). If a vendor is necessary for participant access and cannot accept WIC benefits electronically, COWIC may provide the vendor with a stand-beside Point-of-Sale (POS) system.

The vendor shall redeem COWIC benefits in the form of an EBT process using eWIC cards during normal business hours as indicated by the vendor in its application or otherwise. A vendor's normal hours of operations must be submitted to the Program as part of the application and selection process.

The provisions in this section apply to authorized vendors that are using either an integrated system (i.e., operate a certified integrated ECR POS system) or a stand-beside device (i.e., using a POS stand-beside device(s) leased from the COWIC EBT contractor (Fidelity Information Services (FIS) Government Solutions at the time of writing) to accept eWIC transactions. For vendors that use a stand-beside device(s), certain provisions, outlined in this section may not apply and will be identified as such.

In order to be authorized by the Program to accept eWIC transactions, the vendor shall:

1. Process all transaction types that are required by COWIC. At a minimum this includes balance inquiry, purchase, void and reversal. (In compliance with 7 CFR 246.12(h)(3)(xxxi) and 7 CFR 246.12(bb) (1).)
2. All eligible integrated ECR/POS systems must be capable of processing on-line, real time eWIC transactions that originate from COWIC. To ensure that the integrated ECR system you own or will be purchasing is certified for Colorado eWIC transactions contact the eWIC contractor. At the time of this writing the eWIC contractor contact is:

Custom Data Processing, Inc. (CDP)
Jim Chilcoat, Vendor Relationship Manager
Office: 502-695-1999, Cell: 859-779-5332
Email: jim.chilcoat@cdpehs.com

3. All self-checkout lanes must be separately certified by the eWIC contractor and pre-approved by the Program.
4. Implement a certified system prior to accepting eWIC benefit cards for purchase that performs online eWIC transactions in accordance with published rules, policies and specifications, including:
 - USDA-FNS WIC EBT Operating Rules as amended from time to time.
 - USDA-FNS Technical Implementation Guide (also referred to as TIG). (For access to the most recent version of these documents visit: www.fns.usda.gov/wic/ebt/technical-implementation-guide-operating-rules)
5. Accept liability for redemption of eWIC benefits:
 - For which an approval has not been received from COWIC; and
 - For the incorrect redemption of benefits (e.g. providing an item not authorized by COWIC or not available in the cardholder's account).
6. Accept as payment in full for each WIC authorized product redeemed the lesser of (i) the shelf price requested for the product or (ii) the Program calculated Not-To-Exceed (NTE) price for that product within the store's assigned peer group.
7. Coupon discounts, coupon reductions, price matching or free items are applied to the purchase transaction prior to accepting payment from the WIC cardholder.
8. Ensure that the most current Colorado APL is downloaded to the ECR system or stand-beside device.

9. Scan (or manually enter) the actual UPC or PLU that is affixed to the approved food presented by the eWIC cardholder. For vendors with a stand-beside device, all fresh, frozen or canned fruit and/or vegetable dollar amounts will be entered on the CVB screen.
10. The vendor must never scan codes from UPC code books or reference sheets. The vendor is prohibited from scanning any UPC as a substitute, replacement or scanning a UPC that is otherwise not actually affixed to the item being purchased by the eWIC cardholder. (Formula Warehouses authorized as Pharmacy vendors may apply for approval of an exemption.)
11. Follow Program procedure to submit new UPC for consideration to the APL.
12. Map all WIC approved fresh fruits and vegetables. Assure that only WIC approved fruits and vegetables are sold in exchange for the CVB amount; mapping only approved produce as WIC eligible. Vendors may submit the listing of the UPC and product descriptions of produce to COWIC for approval before mapping to the closest PLU.
13. Provide the capability for eWIC cardholders to retrieve their currently available food benefits balance (i.e., balance inquiry) while in the store or farm without requiring a purchase to be made.
14. Provide the eWIC card holder with a receipt which, at a minimum, shows the store name and address, the date of the transaction, product(s) purchased, price charged for each purchase, and the remaining balance of available benefits.
15. Maintain the certified ECR integrated system or stand-beside device in a manner necessary to ensure system availability for eWIC processing during all hours the store is open for business.
16. Authorized vendors that have \$2 million dollars or more in food sales annually MUST have 1 device for every \$11,000 in monthly WIC redemption. Authorized stores that have less than \$2 million dollars in food sales annually MUST have 1 device for every \$8,000 in monthly WIC redemption. Vendors shall not restrict eWIC cardholders to a single lane when multiple lanes are eWIC capable.
17. Stand Beside Devices:
 - Authorized vendors using a POS stand-beside device may elect to provide eWIC processing capabilities to more lanes than the number required by the WIC Program. If this option is elected, any additional cost incurred must be directly paid by the vendor unless pre-approved by the Program. The vendor must contract with the eWIC Contractor for any additional equipment and support services.
 - The WIC Program will continue to lease POS devices/stand-beside devices for vendors that were authorized during the implementation period, for up to four lanes.
 - Vendors that become WIC authorized after the implementation period is over will not be eligible for this compensation without pre-approval and will be responsible for maintenance, processing fees and operational costs of multi-function systems and equipment.
 - COWIC will not impose cost on participating contractors determined to be necessary for participant access using a stand-beside that is single function (i.e., used exclusively for WIC transactions). COWIC will share in the cost of WIC only stand-beside device if the state agency identifies the contractor as necessary for participant access. COWIC will reassess paying for stand-besides devices every three years during reauthorization to determine if participant access needs have changed. COWIC reserves the right to stop paying for a vendor's stand-beside device at any time.
 - Comply with terms of the eWIC contractor merchant's agreement, including but not limited to return of eWIC equipment and devices.
18. Appropriately display signage as pre-approved by COWIC at checkout lanes that can process eWIC transactions. Ensure signs are posted in a manner consistent with lane identifiers for other payment types at all lanes that accept eWIC transactions.

19. Ensure the eWIC redemption process requires the eWIC cardholder to use a PIN in a manner that protects the security of the PIN and in which no one other than the eWIC cardholder will have knowledge of the PIN. The PIN, along with a valid eWIC benefit card, is the sole source of identification needed in processing a eWIC transaction. The eWIC card must be available at the transaction.
20. Provide only currently authorized WIC foods in exchange for valid benefits issued by COWIC as follows:
 - Sell only approved foods to eWIC cardholders as identified in their electronic benefit account and on their shopping list/benefit prescription.
 - Sell only foods that are approved on the Colorado APL to eWIC cardholders.
 - Sell only approved fresh or frozen fruits and vegetables. In processing fruit and vegetable benefit transactions on the stand-beside device, use CVB Button (please see user manual).
21. Ensure that all cashiers are trained in the proper acceptance and processing of eWIC transactions.
22. Not charge the WIC Program for any fee arising out of, or associated with, operating, maintaining or processing eWIC transactions.
23. Not charge the eWIC cardholder any fee, either directly or indirectly, arising out of or associated with operating, maintaining or processing eWIC transactions.
24. Ensure eWIC cardholders are never given cash in exchange for redeeming their food benefits. Never buy or sell food benefits or food instruments for cash (trafficking).
25. Sell each WIC approved item at the same price charged to other customers, and charge the WIC Program for only those items actually purchased and received by the eWIC cardholder.
26. Keep all eWIC cardholder information confidential, at no time confiscate the eWIC benefit card(s), or ask for, or enter the cardholder's PIN.
27. Request WIC recertification if you or the company that supports your ECR revises the system in any manner that affects its eWIC transaction processing capabilities.
28. Provide timely transaction documentation as requested and fully cooperate in the resolution of any dispute arising in relation to eWIC transactions and redemptions.
29. Maintain required records for the greater of three years after final payment is received or after all pending matters have been resolved. This includes the purchase and inventory records for approved WIC food items which the vendor has claimed reimbursement from the WIC Program.
30. Accept manufacturer's coupons and other store promotions for WIC approved items when processing eWIC transactions in compliance with FNS EBT Operating Rules.
31. Be responsible for updating price changes in the POS device including, but not limited to, changes due to sales or other promotions.
32. Any eWIC cards found in the store or on the store property, if left unclaimed for 24 hours, should be returned to the COWIC office by mailing the cards to WIC, PSD-NS-A4, 4300 Cherry Creek Drive South, Denver, CO 80246.
33. COWIC may deny payment for improperly transacted WIC purchases or may initiate a claim for payments already made on improperly redeemed eWIC purchases.
34. Comply with terms of the FIS Merchant's Agreement. (This provision applies to vendors using a stand-beside device(s) only).

35. The eWIC card must be present at the time of purchase. The card number may be manually keyed if the magnetic stripe is not functioning correctly only if the card is present.
36. Vendors must be certified to accept eWIC transactions during statewide implementation or at the time of authorization if after implementation.
37. A vendor that utilizes a Value Added Reseller, an Acquirer or a Third Party Processor (TPP) shall incorporate these requirements into agreements with those parties. The vendor is responsible for expenses, cost and fees related to WIC and SNAP transactions and the utilization of a Value Added Reseller, an Acquirer or a TPP.
38. Vendors can only accept WIC benefits from participants, caretakers, parents or proxies per federal regulation 246.12.h.3.i.

SECTION IV: PROGRAM RESPONSIBILITIES

In order to support vendors in processing eWIC transactions the Program agrees to:

1. Provide to vendors authorized during the implementation phase stand-beside devices as needed, based on the vendor's average monthly WIC redemptions, number of cash registers or other agreed upon factors, if applicable, to vendors authorized during the implementation phase.
2. Provide networks and host processing for eWIC transactions that provide on-line and real time approval, 24 hours a day, seven days a week at least 99.9% of the time. Occasionally system maintenance will occur and will be scheduled between 1 A.M. and 5 A.M. local time.
3. Make available daily the most current APL containing a complete listing of products that are approved for redemption by COWIC through its eWIC contractor.
4. Provide training to store representatives, at initial authorization and periodically, on the eWIC policies and procedures.
5. Establish a calculated NTE price for WIC approved food items and use this NTE in reimbursing vendors for items purchased by the eWIC cardholder.
6. Reimburse (settle to) the vendor for approved eWIC transactions that are made in accordance with applicable state and federal rules and requirements. Settlement will make use of commercial payment system settlement practices. Settlement amounts may differ from requested amounts because:
 - The price of the food items within a transaction exceeds the NTE price designated by WIC Program for that food item and quantity or exceeds the vendor's shelf price for the food purchased;
 - Not all of the food items within a transaction are approved; or
 - Adjustments for previous transactions are applied.
7. Reimburse the vendor for approved eWIC redemptions that are made in accordance with applicable state and federal requirements.
8. Provide administrative oversight to ensure authorized vendors meet compliance and integrity requirements in accepting and processing eWIC transactions.

SECTION V: SIGNATURES

The vendor agrees that the vendor has read, understands and will comply with the terms in this Agreement. The vendor also agrees to comply with conditions stated in: 7 CFR 246, the completed application form, the Colorado WIC Vendor Handbook, approved foods list, memos, other formal instructions, and terms of participation issued to vendors by the COWIC office.

This Colorado WIC Vendor Agreement may be executed in counterparts or with signatures obtained via facsimile or scan and electronic mail transmission, each of which have full force and effect upon execution by all parties to this Agreement.

The undersigned represents that he/she is an owner or has other legal authority to obligate the vendor:

Owner/Corporation Name: _____

Print Name: _____ Signature: _____

Print Title: _____ Date: _____

The undersigned has the authority to sign this Agreement on behalf of the Colorado WIC Program

Print Name: Heidi Hoffman Signature: _____

Print Title: Colorado WIC Program Director Date: _____

EXHIBIT F. COLORADO WIC PROGRAM HOME DELIVERY CONTRACTOR AGREEMENT – FORMULA

Colorado Special Supplemental Nutrition Program for Women, Infants and Children (COWIC)

Contractor Name: _____

(For COWIC Use Only – WIC Vendor ID#): _____

This Home Delivery Agreement (“Agreement”) is made by and between the State of Colorado, acting by and through Colorado WIC (COWIC), the Colorado Department of Public Health and Environment (CDPHE), Prevention Services Division, whose address and principal place of business is 4300 Cherry Creek Drive South, Denver, Colorado 80246, and the entity named below, hereinafter referred to as the “Contractor.”

Legal name of entity

Principal place of business—street address, city, state and zip code

Agreement effective, unless otherwise terminated, until: **September 30, 2028.**

PURPOSE

This document, upon signature by the contractor and Colorado WIC (COWIC), is an agreement for the purpose of providing an authorized source from which qualifying women, infants and children can obtain nutritious supplemental foods in accordance with the rules, regulations and policies of the Special Supplemental Nutrition Program for Women, Infants and Children established by the Food and Nutrition Service (FNS), United States Department of Agriculture (USDA) and CDPHE.

FACTUAL RECITALS

SECTION I: PARTNERING WITH THE PROGRAM

1. This Agreement authorizes the above-named Contractor to accept WIC food instruments issued by the State’s Special Supplemental Nutrition Program for Women, Infants and Children (WIC) (hereinafter referred to as the Program and COWIC).
2. The Contractor shall comply with all applicable federal regulations contained in the Federal Register, 7 C.F.R. Part 246, and Program policies and procedures which are contained in the current version of the Colorado WIC Vendor Handbook (Handbook). This Handbook, and all relevant policy letters issued by the Program, are incorporated herein by this reference and made part hereof.
3. The Contractor agrees to remain in compliance with the authorization selection criteria as outlined in the Handbook throughout the term of this Agreement.
4. The Contractor, or an authorized representative of the Contractor, shall participate in training sessions offered by the Program on its policies and procedures. Annual contractor training may be provided by the Program in a variety of formats, including newsletters, videos, and interactive training. Interactive training shall be conducted at least once during the term of this Agreement. The Program shall have sole discretion to designate the date, time and location of all interactive training, except that the Program shall provide the Contractor with at least one alternative date on which to attend this interactive training. The Contractor is

responsible for training cashiers on how-to correctly process WIC-authorized transactions. The Contractor shall provide all affected employees with any new information it receives from the Program. The Contractor is ultimately liable for the actions of its owners, officers, managers, agents and employees with respect to WIC-authorized transactions.

5. The Contractor shall provide valid contact information, including a working email address via which they agree to receive notifications from the Program.
6. The Contractor shall provide time to federal, state or local agency representatives for periodic, announced and unannounced visits to determine its compliance with federal or state rules, regulations, policies and procedures of the Program. The Contractor shall provide access to its shelf price and transaction records in its possession at the time of the visit upon request.
7. The Contractor shall maintain inventory records used for federal tax reporting purposes and other records the Program may require for the time period covered by this Agreement. Upon request, the Contractor shall make available to representatives of the Program, the Department, and the Comptroller General of the United States, at any reasonable times and places for inspection and audits, Program-related records.
8. The Contractor shall accept WIC transactions using the procedures outlined in the Handbook, including those listed below:
 - a. The contractor shall accept payment based on the contractor's peer group (i.e., like stores/contractors in the same geographical type area, etc.) price levels.
 - b. The Contractor shall provide WIC-authorized foods to a WIC participant at the same price charged to a non-WIC participant.
 - c. The Contractor shall not apply tax of any kind to authorized foods or formulas purchased with a WIC food instrument.
 - d. The Contractor shall not provide unauthorized food items, non-food items, cash or credit (including rain checks) in exchange for a WIC food instrument.
 - e. The Contractor shall not provide refunds or permit exchanges for authorized supplemental foods or formulas obtained with a WIC food instrument; except for exchanges of an identical authorized supplemental food item or formulas when the original authorized supplemental food item is defective, recalled, spoiled, or has exceeded its "sell by," "best if used by," or other date limiting the sale or use of the food item.
 - f. As described in the 7 CFR 246 and the Handbook, all sanctions for WIC Program fraud and abuse and penalties apply to eWIC cards and are interchangeable with all references to WIC food instruments and benefits.
9. The Contractor shall notify the Program at least 60 calendar days in advance of the date it intends to cease operations or change location or ownership. This Agreement is null and void upon the effective date of a change of ownership.
10. The Contractor shall not discriminate against a WIC participant on the basis of race, color, national origin, sex, age or disability. The Contractor shall offer WIC participants the same courtesies as those offered to non-WIC participants.
11. The Contractor shall not attempt to seek additional reimbursement from a WIC participant under any circumstances in connection with a WIC transaction.
12. The Program may issue a claim and bill the Contractor for payments it has already made to the Contractor in error, or upon detection of a Program violation. Contractors have 30 calendar days to pay the claim. Failure to pay the claim shall result in future payments being withheld to offset the claim.
- 13. The Contractor is responsible for fees, including but not limited to interchange fees, its bank or point-of-**

sale processor and/or provider may charge.

- 14.** The Contractor shall submit shelf price lists as requested by the Program.
- 15.** If the Contractor fails to comply with the Program requirements, as defined in the Handbook, applicable federal regulations, and this Agreement, including any changes made by policy letter, then the Contractor may be disqualified from further participation in the Program, may be required to pay a civil money penalty, may be required to participate in mandatory remedial training, may be required to submit a corrective action plan (CMP), or may be denied payment by the Program.
- 16.** If the Program disqualifies or imposes a civil money penalty against the Contractor then the Contractor may also be disqualified from participation in the Supplemental Nutrition Assistance Program (SNAP), which is administered by the USDA, for an equal period of time. A reciprocal disqualification from SNAP, based on a disqualification by the Program, is not subject to administrative appeal to SNAP or judicial review.
- 17.** If the Contractor is disqualified from SNAP because of a failure to comply with the requirements of that program, then the Contractor shall also be disqualified from this Program. The reciprocal Program disqualification shall be for an equal period of time as the SNAP disqualification. However, the Program period of disqualification may begin at the same time as the SNAP period of disqualification or on a later date than the SNAP disqualification. If a potential disqualification of the Contractor from the Program is based on a SNAP disqualification, but would result in inadequate WIC participant access in the service area of the Contractor, then the Program shall not disqualify the Contractor. The Program may impose a civil money penalty in lieu of disqualification. Subsequent sanctions may result in disqualification. A reciprocal disqualification by the Program, based on a SNAP disqualification, is not subject to administrative appeal to the WIC Program or judicial review.
- 18.** If SNAP assesses a civil money penalty against the Contractor, instead of disqualification, to avoid creating inadequate SNAP participant access in the service area of the Contractor, then the Program may disqualify the Contractor from participation in its Program. If the Contractor is disqualified from the Program because of the imposition of a civil money penalty by SNAP, then the Contractor may file an administrative appeal with the Program of that disqualification.
- 19.** The Program shall immediately terminate this Agreement if it determines that the Contractor has provided false information in connection with its application for authorization.
- 20.** The Program may impose a sanction of disqualification and/or the imposition of a civil money penalty against the Contractor only after the Program has given the Contractor 15 calendar days' advance written notice of its intent to impose a sanction. In deciding whether or not to postpone the imposition of a sanction until a hearing decision has been rendered, the Program shall determine whether inadequate WIC participant access would result from the imposition of its proposed sanction. The Program is not required to give the above-referenced notice to the Contractor if the sanction is based on the conviction of the Contractor for: buying or selling a WIC food instrument (trafficking); or selling firearms, ammunition, explosives or controlled substances in exchange for a WIC food instrument. The effective date of the WIC Program sanction shall be the date the Contractor receives written notice of that sanction. The Program will notify a contractor in writing of an initial violation for which a pattern is required to sanction; unless it is determined, that notification would compromise an investigation. Refer to the Handbook for a listing of contractor sanctions.

21. The Program shall terminate this Agreement if the Program identifies a conflict of interest, as defined by applicable state laws, regulations and policies between the Contractor and the Program or its local agencies.
22. A contractor who commits fraud or abuse in the Program is liable for prosecution under applicable federal, state or local laws. Anyone who willfully misapplies, steals, or fraudulently obtains Program funds shall be subject to a fine of not more than \$25,000 or imprisonment for not more than five years or both, if the value of the funds is \$100 or more. If the value is less than \$100, the penalties are a fine of no more than \$1,000 or imprisonment for not more than one year, or both.
23. This Agreement does not constitute a license or a property interest. If the Contractor wishes to continue to be authorized beyond the term of the current Agreement, then the Contractor must apply for reauthorization. If the Contractor is disqualified, then the Program may terminate this Agreement. If this Agreement is terminated, then the Contractor must reapply in order to be authorized after the disqualification period expires. In all cases, the Contractor's new application shall be subject to the Program's authorization criteria in effect at the time of the reapplication. Neither the Program nor the Contractor has an obligation to renew this Agreement. Expiration of this Agreement shall not be subject to appeal or administrative review.
24. The Contractor has the right to appeal, through a fair hearing process, a Program decision which denies an application of the Contractor to participate in the Program or disqualifies the Contractor from participation in the Program. The expiration or non-renewal of this Agreement is not subject to administrative appeal or judicial review. If a hearing has been scheduled, then the Contractor shall have one opportunity to reschedule the hearing date upon written request to the Program. (Administrative review procedures and actions subject to review are provided in the Handbook.)
25. The Program may terminate this Agreement by providing the Contractor with 15 calendar days advance written notice of its intent to terminate. The Contractor may terminate this Agreement by providing 30 calendar days advance written notice of its intent to terminate. The parties shall not be released from their respective duties to perform their obligations until the effective date of termination has passed.
26. Additional sanctions for fraud and abuse:
 - a. The COWIC Office may send a warning letter to the Contractor, require training for designated personnel, require implementation of a corrective action plan, require payment of a forfeiture, require recoupment, disqualify the Contractor for no more than six months, or impose any combination of these sanctions if they:
 - i. Fail to maintain a current Pharmacy License.
 - ii. Fail to notify the COWIC Benefit Delivery Unit of any civil or criminal convictions.
 - iii. Fail to pay child support, taxes and money judgments.
27. When a store location is currently involved in the audit process or has been sanctioned by WIC or SNAP and is in the appeal process, authorization of a new owner may be denied at this location until completion of the audit or appeal decision is rendered.
28. Contractors authorized as pharmacies agree not to provide standard infant formula unless by request from COWIC State Office.
29. The contractor will provide proof of the current pharmacy license.
30. This Agreement is effective as of the date the last party signs it and shall remain in effect, unless otherwise terminated, until **September 30, 2028.**

SECTION II: EWIC DEFINITION

1. **Approved Product List (APL)** – Electronic files identifying WIC food items authorized by COWIC for purchase with WIC benefits.
2. **Cash Value Benefit (CVB)** – A fixed-dollar amount associated with the eWIC card used by a cardholder to obtain authorized fruits and vegetables.
3. **Electronic Cash Register (ECR)** - A type of cash register used by contractors with an integrated system to accept eWIC transactions.
4. **eWIC Cardholder** - An authorized person (i.e., participant, parent, legal guardian, caretaker, proxy) in possession of an eWIC benefit card. This eWIC benefit card and Personal Identification Number (PIN) allows the cardholder to purchase approved food items prescribed to one or more participants assigned to a family's account.
5. **eWIC Contractor** - EBT contractor hired by WIC.
6. **eWIC Transaction** - An on-line, real time payment method that electronically pays authorized contractors for food items purchased by an eWIC cardholder. An eWIC card is issued by COWIC to each eligible family account. The eWIC card is used by the eWIC cardholder to purchase approved foods at authorized contractor locations.
7. **Personal Identification Number (PIN)** - A secret identification number selected by the eWIC cardholder to access their WIC benefits.
8. **Authorization Code** - Temporary code to be used in place of the PIN when the transaction does not happen in person between the client and the retailer. Only certain COWIC State Office staff members can pull authorization codes and therefore approve transactions remotely.
9. **Price Look-Up (PLU)** - A four (4) or five (5)-digit number defined by the International Federation for Produce Standards (IFPS) used to identify products that typically are of variable measure.
10. **Universal Product Code (UPC)** – A specific type of barcode used to identify products sold by contractors. Approved WIC food item UPC are entered on the APL file.
11. **Balance Inquiry (BI)** – A shopping list and/or to the balance of the items in the eWIC benefit balance provided to WIC shoppers prior to beginning a purchase.
12. **Void** - The cancellation of a transaction (before the entire transaction has been completed). A voided transaction shall not be used to return or provide credit for WIC foods.
13. **Reversal** – To partially or completely nullify the effects of a previous purchase transaction and add benefits back to the WIC prescription benefit because the transaction cannot be processed as instructed.
14. **Food instrument** - The instrument used by the WIC Program to conduct WIC transactions (e.g., eWIC cards).
15. **Home Food Delivery Contractor ("contractor")** - A sole proprietorship, partnership, cooperative association, corporation, or other business entity that contracts with a State agency to deliver authorized supplemental foods to the residences of participants under a home food delivery system.

SECTION III: EWIC PROCESSING REQUIREMENTS

The Contractor shall demonstrate its capability to accept WIC benefits electronically (i.e., the contractor has an Electronic Benefit Transfer (EBT) capable register system) prior to authorization and shall comply with WIC EBT operating rules, standards and technical requirements including those in the Technical Implementation Guide (TIG). If a contractor is necessary for participant access and cannot accept WIC benefits electronically, COWIC may provide the contractor with a stand-beside Point-of-Sale (POS) system.

The Contractor shall redeem COWIC benefits in the form of an EBT process using eWIC cards during normal business hours as indicated by the contractor in its application or otherwise. A contractor's normal hours of operations must be submitted to the Program as part of the application and selection process.

The provisions in this section apply to authorized contractors that are using either an integrated system (i.e., operate a certified integrated ECR POS system) or a stand-beside device (i.e., using a POS stand-beside device(s) leased from the COWIC EBT contractor (Fidelity Information Services (FIS) Government Solutions at the time of writing) to accept eWIC transactions. For contractors that use a stand-beside device(s), certain provisions outlined in this section may not apply and will be identified as such.

In order to be authorized by the Program to accept eWIC transactions, the contractor shall:

1. Process all transaction types that are required by COWIC. At a minimum, this includes balance inquiry, purchase, void, and reversal. (In compliance with 7 CFR 246.12(h)(3)(xxxi) and 7 CFR 246.12(bb) (1).)
2. All eligible integrated ECR/POS systems must be capable of processing on-line, real time eWIC transactions that originate from COWIC. To ensure that the integrated ECR system you own or will be purchasing is certified for Colorado eWIC transactions, contact the eWIC contractor. At the time of this writing the eWIC contractor contact is:

Custom Data Processing, Inc. (CDP)
Jim Chilcoat, Contractor Relationship Manager
Office: 502-695-1999, Cell: 859-779-5332
Email: jim.chilcoat@cdpehs.com
3. Implement a certified system prior to accepting eWIC benefit cards for purchase that performs online eWIC transactions in accordance with published rules, policies and specifications, including:
 - a. USDA-FNS WIC EBT Operating Rules as amended from time to time.
 - b. USDA-FNS Technical Implementation Guide (also referred to as TIG). (For access to the most recent version of these documents visit: www.fns.usda.gov/wic/ebt/technical-implementation-guide-operating-rules.)
4. Accept liability for redemption of eWIC benefits:
 - a. For which an approval has not been received from COWIC; and
 - b. For the incorrect redemption of benefits (e.g. providing an item not authorized by COWIC or not available in the cardholder's account).
5. Accept as payment in full for each WIC authorized product redeemed the lesser of (i) the shelf price requested for the product or (ii) the Program calculated Not-To-Exceed (NTE) price for that product within the store's assigned peer group.
6. Coupon discounts, coupon reductions, price matching or free items are applied to the purchase transaction prior to accepting payment from the WIC cardholder.
7. Ensure that the most current Colorado APL is downloaded to the ECR system or stand-beside device.

8. Scan (or manually enter) the actual UPC that is affixed to the approved food presented by the eWIC cardholder.
9. The contractor can scan codes from UPC codebooks or reference sheets for formula items only. The contractor is prohibited from scanning any UPC as a substitute, replacement or scanning a UPC that is otherwise not actually affixed to the item being purchased by the eWIC cardholder.
10. Follow the Program procedure to submit a new UPC for consideration to the APL.
11. Provide the eWIC cardholder with a receipt that, at a minimum, shows the store name and address, the date of the transaction, product(s) purchased, price charged for each purchase, and the remaining balance of available benefits.
12. Maintain the certified ECR integrated system or stand-beside device in a manner necessary to ensure system availability for eWIC processing during all hours the store is open for business.
13. Stand-Beside Devices:
 - a. Authorized contractors using a POS stand-beside device may elect to provide eWIC processing capabilities to more lanes than the number required by the WIC Program. If this option is elected, the contractor must directly pay any additional cost incurred unless pre-approved by the program. The contractor must contract with the eWIC Contractor for any additional equipment and support services.
 - b. The WIC program will continue to lease POS devices for contractors that were authorized during the implementation period, for up to four lanes.
 - c. Contractors that become WIC authorized after the implementation period is over will not be eligible for this compensation without pre-approval and will be responsible for maintenance, processing fees and operational costs of multi-function systems and equipment.
 - d. COWIC will not impose cost on participating contractors determined to be necessary for participant access using a stand-beside that is single function (i.e., used exclusively for WIC transactions). COWIC will share in the cost of WIC only stand-beside device if the state agency identifies the contractor as necessary for participant access. COWIC will reassess paying for stand-besides devices every three years during reauthorization to determine if participant access needs have changed. COWIC has the right to stop paying for a vendor's stand-beside device at any time.
 - e. Comply with terms of the eWIC contractor merchant's agreement, including but not limited to return of eWIC equipment and devices.
14. The eWIC redemption process requires the use of an authorization code provided by COWIC.
15. Provide only currently authorized WIC formulas in exchange for valid benefits issued by COWIC as follows:
 - a. Sell only the prescribed formulas to eWIC cardholders as identified in their electronic benefit account and on their benefit prescription.
 - b. Sell only formulas that are approved on the Colorado APL to eWIC cardholders.
16. Ensure that all cashiers/employees are trained in the proper acceptance and processing of eWIC transactions.
17. Not charge the WIC Program for any fee arising out of, or associated with, operating, maintaining or processing eWIC transactions.
18. Not charge the eWIC cardholder any fee, either directly or indirectly, arising out of or associated with operating, maintaining or processing eWIC transactions.
19. Ensure eWIC cardholders are never given cash in exchange for redeeming their food benefits. Never buy or sell food benefits or food instruments for cash (trafficking).
20. Sell each WIC approved item at the same price charged to other customers, and charge the WIC Program for only those items actually purchased and received by the eWIC cardholder.
21. Keep all eWIC cardholder information confidential, at no time confiscate the eWIC benefit card(s), or ask for, or enter the cardholder's PIN.

22. The contractor shall maintain the confidentiality information of participants and strictly comply with the confidentiality provisions of 7 C.F.R. § 246.26(d) which restricts the use and disclosure of confidential applicant and participant information to persons directly connected with the administration or enforcement of the WIC Program whom the State agency determines have a need to know the information for WIC Program purposes.
23. Contract shall be required to sign a Data Confidentiality Agreement.
24. Request WIC recertification if you or the company that supports your ECR revises the system in any manner that affects its eWIC transaction processing capabilities.
25. Provide timely transaction documentation as requested and fully cooperate in the resolution of any dispute arising in relation to eWIC transactions and redemptions.
26. Maintain required records for the greater of three years after final payment is received or after all pending matters have been resolved. This includes the purchase and inventory records for approved WIC formulas which the Contractor has claimed reimbursement from the WIC Program.
27. Accept manufacturer's coupons and other store promotions for WIC approved items in processing eWIC transactions in compliance with FNS EBT Operating Rules.
28. Be responsible for sharing updated prices with COWIC.
29. Any eWIC cards found in the store or on the store property, if left unclaimed for 24 hours, should be returned to the COWIC office by mailing the cards to WIC, PSD-NS-A4, 4300 Cherry Creek Drive South, Denver, CO 80246.
30. COWIC may deny payment for improperly transacted WIC purchases or may initiate a claim for payments already made on improperly redeemed eWIC purchases.
31. Comply with terms of the FIS Merchant's Agreement. (This provision applies to contractors using a stand-beside device(s) only).
32. The eWIC card can be manually keyed.
33. The contractor must be certified to accept eWIC transactions during statewide implementation or at the time of authorization if after implementation.
34. A Contractor that utilizes a Value Added Reseller, an Acquirer or a Third Party Processor (TPP) shall incorporate these requirements into agreements with those parties. The contractor is responsible for expenses, cost and fees related to WIC and SNAP transactions and the utilization of a Value Added Reseller, an Acquirer or a TPP.

SECTION IV: CONTRACTOR RESPONSIBILITIES

1. Contractor shall deliver formula items to the requested address provided by COWIC on or within 48 hours of the requested delivery date for each formula order.
2. If the Contractor is only able to fulfill a partial request, the Contractor shall communicate when the order will be fulfilled completely within the current month.
3. The contractor shall communicate to COWIC when or if the formula becomes unavailable.
4. Contractor shall include COWIC and local agency staff who placed the order on all communications regarding formula orders, unless State Office staff have specifically requested to remove local agency staff from the communications.
5. Each client's order shall be packaged in individual boxes.
6. Communication regarding orders placed before 2 p.m. MST shall be received the same day regarding order status, stock availability and anticipated delivery date.
7. The contractor shall have a system in place to provide a tracking mechanism for orders and can provide detailed information on tracking to COWIC as needed.
8. The contractor shall notify COWIC once the order has been successfully delivered to the requested address.

9. The contractor shall maintain electronic records of proof of delivery of each formula order delivered to a client's home.
10. The contractor shall send a proof of delivery document to the state WIC office on or before the 15th of each month. This document should include all proof of home delivery records from the previous month.
11. The contractor shall follow-up on delayed or lost orders directly with the shipping company to resolve the issue.
12. The contractor shall maintain a database of LOT numbers and a way to track formulas provided to COWIC in case of a formula recall.
13. Failure to comply with any of the above responsibilities may result in issuance of violations points or termination of this contract.

SECTION V: PROGRAM RESPONSIBILITIES

In order to support contractors in processing eWIC transactions the COWIC Program agrees to:

1. Provide to contractors authorized during the eWIC implementation phase stand-beside devices as needed, based on the contractor's average monthly WIC redemptions, number of cash registers or other agreed upon factors, if applicable, to contractors authorized during the implementation phase.
2. Provide networks and host processing for eWIC transactions that provide on-line and real time approval, 24 hours a day, seven days a week at least 99% of the time. Occasionally system maintenance will occur and will be scheduled between 1 A.M. and 5 A.M. local time.
3. Make available daily the most current APL containing a complete listing of products that are approved for redemption by COWIC through its eWIC Contractor.
4. Provide training to store representatives, at initial authorization and periodically, on the eWIC policies and procedures.
5. Establish a calculated NTE price for WIC approved formula items and use this NTE in reimbursing contractors for items purchased by the eWIC cardholder.
6. Reimburse (settle to) the Contractor for approved eWIC transactions that are made in accordance with applicable state and federal rules and requirements. Settlement will make use of commercial payment system settlement practices. Settlement amounts may differ from requested amounts because:
 - a. The price of the food items within a transaction exceeds the NTE price designated by WIC Program for that food item and quantity or exceeds the Contractor's shelf price for the food purchased;
 - b. Not all of the food items within a transaction are approved; or
 - c. Adjustments for previous transactions are applied.
7. Reimburse the Contractor for approved eWIC redemptions that are made in accordance with applicable state and federal requirements.
8. Provide administrative oversight to ensure authorized contractors meet compliance and integrity requirements in accepting and processing eWIC transactions.

SECTION V: SIGNATURES

The Contractor agrees that the Contractor has read, understands and will comply with the terms in this Agreement. The Contractor also agrees to comply with conditions stated in: 7 CFR 246, the completed application form, the Colorado WIC Vendor Handbook, approved Food List, memos, other formal instructions, and terms of participation issued to contractors by the COWIC office. This Colorado WIC Contractor Agreement may be executed in counterparts or with signatures obtained via facsimile or scan and electronic mail transmission, each of which have full force and effect upon execution by all parties to this Agreement.

The undersigned represents that he/she is an owner or has other legal authority to obligate the contractor:

Signature of Owner, Partner, or Corporation Only: _____

Print Name: _____ Signature: _____

Print Title: _____ Date: _____

The undersigned has the authority to sign this Agreement on behalf of the Colorado WIC Program

Print Name: Heidi Hoffman Signature: _____

Print Title: Colorado WIC Program Director Date: _____

EXHIBIT G. COLORADO WIC PROGRAM ADMINISTRATIVE REVIEW PROCEDURES FOR VENDOR APPEALS

A. DEFINITION OF AN ADMINISTRATIVE REVIEW

Administrative Review Procedures allow affected vendors, who file an appeal concerning one of the actions listed in Subsection B of this policy, an opportunity to have a formal hearing by an impartial Administrative Hearing Official (hearing officer). Hearings will be conducted at the state level in accordance with the Administrative Procedures Act §24-4-105 and §24-4-106 C.R.S., Code of Federal Regulations 7 Part 246, and WIC policies and procedures.

These procedures provide a mechanism to ensure that:

1. Vendors have an objective and impartial avenue of redress when they feel they have been denied authorization, treated unfairly, or have had an adverse action taken against them by Colorado WIC (Program) and/or Local WIC Agency (LA); and
2. Program standards, policies, procedures and regulations are being applied without prejudice.

B. ACTIONS SUBJECT TO ADMINISTRATIVE REVIEW

1. Denial of authorization based on the application of the vendor selection criteria for minimum variety and quantity of authorized supplemental foods, or on a determination that the vendor is attempting to circumvent a sanction;
2. Termination of an agreement for cause;
3. Disqualification; and
4. Imposition of a fine or a civil money penalty in lieu of disqualification.

C. ACTIONS SUBJECT TO ABBREVIATED ADMINISTRATIVE REVIEW

1. Denial of authorization based on the WIC selection criteria for business integrity or for a current Supplemental Nutrition Assistance Program (SNAP) disqualification or civil money penalty for hardship;
2. Denial of authorization based on the application of the WIC selection criteria for competitive price;
3. The application of State agency's vendor peer group criteria and the criteria used to identify vendors that are above-50-percent vendors or comparable to above-50-percent vendors; application of peer group criteria and above 50% status determination when the application for this criteria is the basis of the adverse action.
4. Denial of authorization based on a State agency-established vendor selection criterion if the basis of the denial is a WIC vendor sanction or a SNAP withdrawal of authorization or disqualification;
5. Denial of authorization based on the State agency's vendor limiting criteria;
6. Denial of authorization because a vendor submitted its application outside the timeframes during which applications are being accepted and processed as established by the State agency;
7. Termination of an agreement because of a change in ownership or location or cessation of operations;
8. Disqualification based on a trafficking conviction;
9. Disqualification based on the imposition of a SNAP civil money penalty for hardship;
10. Disqualification or a civil money penalty imposed in lieu of disqualification based on a mandatory sanction imposed by another WIC State agency;
11. A civil money penalty imposed in lieu of disqualification based on a SNAP disqualification;

12. Denial of an application based on a determination of whether an applicant vendor is currently authorized by SNAP.

D. ACTIONS NOT SUBJECT TO AN ADMINISTRATIVE REVIEW

1. The validity or appropriateness of the State agency's vendor limiting criteria or vendor selection criteria for minimum variety and quantity of supplemental foods, business integrity, and current Supplemental Nutrition Assistance Program disqualification or civil money penalty for hardship;
2. The validity or appropriateness of the State agency's selection criteria for competitive price, including, but not limited to, vendor peer group criteria and the criteria used to identify vendors that are above-50-percent vendors or comparable to above-50-percent vendors;
3. The validity or appropriateness of the State agency's participant access criteria and the State agency's participant access determinations;
4. The State agency's determination to include or exclude an infant formula manufacturer, wholesaler, distributor, or vendor from the list required pursuant to Sec. 246.12(g) (11);
5. The validity or appropriateness of the State agency's prohibition of incentive items and the State agency's denial of an above-50-percent vendor's request to provide an incentive item to customers;
6. The State agency's determination whether to notify a vendor in writing when an investigation reveals an initial violation for which a pattern of violations must be established in order to impose a sanction;
7. The State agency's determination whether a vendor had an effective policy and Program in effect to prevent trafficking and that the ownership of the vendor was not aware of, did not approve of, and was not involved in the conduct of the violation;
8. Denial of authorization if the State agency's vendor authorization is subject to the procurement procedures applicable to the State agency;
9. The expiration of a vendor's agreement;
10. Disputes regarding food instrument or cash-value voucher payments and vendor claims (other than the opportunity to justify or correct a vendor overcharge or other error; and
11. Disqualification of a vendor as a result of disqualification from SNAP.

E. PROCEDURES FOR AN ADMINISTRATIVE REVIEW

1. Notification of Action
 - a. When the adverse action is a denial of authorization or permanent disqualification based on a conviction for trafficking in WIC food instruments or selling firearms, ammunition, explosives or controlled substances, no advance notice will be issued. The effective date of the action will be on the date of receipt of the notice.
 - b. For all other adverse actions Colorado WIC will provide the vendor with a written notice of adverse action at least fifteen (15) calendar days prior to the effective date of the action.
 - c. The notice of adverse action shall include the action being taken, the cause(s) for the action, and the right to appeal the action. A copy of the Administrative Review Procedures will also be provided.
2. Appealing an Action
 - a. Within thirty (30) calendar days of the date the notice of action is sent the vendor must submit and Colorado WIC must have received a written request for an Administrative Review to Colorado WIC. The request must include the following information: vendor name, vendor ID, action(s) being appealed, reason for appeal and date of request.
 - b. A request for a hearing will be denied or dismissed if:

- i. the written request is not received within thirty (30) calendar days from the date the notice of action is sent;
 - ii. the request is withdrawn in writing by the vendor or representative; and/or
 - iii. the vendor or representative failed, without good cause as determined by the hearing officer, to appear at scheduled hearing.
 - c. Appealing an action does not relieve a vendor, permitted to continue participating in Colorado WIC while its appeal is in process, from the responsibility of continued compliance with the terms of the Agreement. Continued participation in Colorado WIC, pending an appeal decision, will be granted only in situations when a Civil Money Penalty has been assessed due to inadequate participant access.
- 3. Administrative Review Hearing - General Rules and Procedures
 - a. Upon receipt of an appeal request, Colorado WIC will acknowledge to the vendor, in writing, that it has received the request. An explanation of the hearing procedures will be sent with the acknowledgement.
 - b. Vendors will receive a minimum of ten (10) calendar days advance written notice of the time and place of the hearing.
 - c. CDPHE will provide a hearing officer, an impartial decision maker, whose decision as to the validity of the action shall rest solely on the evidence presented at the hearing, the federal regulations and Colorado WIC policies and procedures.
 - d. The vendor shall have the opportunity to:
 - i. present its case and at least one opportunity to reschedule the hearing date upon request;
 - ii. cross-examine adverse witnesses;
 - iii. be represented by counsel; and
 - iv. examine prior to the hearing the evidence upon which the adverse action is based.
 - e. The hearing shall be conducted in accordance with provisions of §24-4-105 C.R.S.
- 4. Administrative Review Decision
 - a. Within ninety (90) calendar days of the receipt of the appeal, the hearing officer must issue an initial Administrative Review Decision (decision) providing a summary of the facts of the case, specifying the reasons for the decision, and identifying the supporting evidence and the pertinent regulations or policy.
 - b. The initial decision of the hearing officer shall be submitted, in writing, to the Executive Director of the Department. A copy of the decision will also be provided to Colorado WIC and the vendor.
 - c. The vendor or Colorado WIC may file a written appeal of the initial decision with the Department's Executive Director within twenty (20) calendar days of receipt of the initial decision. The Executive Director may affirm, modify, or reverse the initial decision in accordance with §24-4-105 C.R.S.
 - d. If an appeal is not received within twenty (20) calendar days, the initial decision of the hearing officer will be adopted by the Executive Director and shall constitute the final action.
 - e. If the decision is in favor of the vendor, and authorization was denied or disqualification occurred, the vendor will be authorized on as soon as administratively feasible after receipt of administrative review decision.
 - f. If the decision is in favor of Colorado WIC and the disqualified vendor was permitted to continue accepting WIC food instruments, the vendor will be terminated as soon as administratively feasible. Vendors will be allowed to continue accepting WIC food instruments during an appeal only if an inadequate participant access was determined.

- ## 5. Withdrawal or Default of an Appeal

If the Department's final decision is rendered against the vendor, judicial review may be pursued in accordance with §24-4-106 C.R.S.

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), disability, age, or reprisal or retaliation for prior civil rights activity.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained [online](#), from any USDA office, by calling 866-632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to USDA by:

(3) email: program.intake@usda.gov

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EXHIBIT H. FOOD SALES FACT SHEET

A. GUIDE TO FOOD SALES QUESTIONS ON THE COLORADO WIC APPLICATION

The application for Colorado WIC (COWIC) asks for several types of the store's annual sales—including a) food sales, b) non-food sales and c) total sales. What do they mean? (Annual SNAP sales are explained at the page bottom.) For more information, please see the Code of Federal Regulations- Title 7 §246 at www.ecfr.gov/current/title-7/subtitle-B/chapter-II/subchapter-A/part-246.

B. FOOD SALES

"Food" sales include sales of food, such as:

- Fruits and vegetables;
- Meat, poultry, and fish;
- Dairy products;
- Breads and cereals;
- Other foods such as snack foods and non-alcoholic beverages; and
- Seeds and plants, which produce food for the household to eat

A vendor should include the sales of items that **may be purchased with SNAP benefits** in the food sales amount reported to COWIC on the application. **Food sales** means sales of all SNAP eligible foods intended for home preparation and consumption, including meat, fish and poultry; bread and cereal products; dairy products; fruits and vegetables. Food items such as condiments and spices, coffee, tea, cocoa, and carbonated and noncarbonated drinks may be included in food sales when offered for sale along with foods in the categories identified above. Food sales do not include sales of any items that cannot be purchased with SNAP benefits, such as hot foods or food that will be eaten in the store. (§246-2 C.R.S.) These sales numbers match what stores should track and provide to SNAP.

C. NON-FOOD SALES

"Non-Food" sales include sales of items that households CANNOT use SNAP benefits to buy, such as:

- Beer, wine, liquor, cigarettes, or tobacco
- Vitamins, medicines, and supplements. If an item has a Supplement Facts label, it is considered a supplement and is not eligible for SNAP purchase.
- Live animals (except shellfish, fish removed from water, and animals slaughtered prior to pick-up from the store).
- Prepared Foods fit for immediate consumption (such as cooked hot dogs, pizza slices, etc.)
- Hot foods
- Any nonfood items such as:
- Pet foods
- Cleaning supplies, paper products, and other household supplies.
- Hygiene items, cosmetics

D. TOTAL ANNUAL GROSS SALES: (FOOD SALES + NON-FOOD SALES = TOTAL GROSS SALES)

"Total Annual Gross" sales are the total of annual Food and Non-Food sales.

E. ANNUAL SNAP SALES

"Annual SNAP Sales" are the sales of items that **were purchased with SNAP benefits** (i.e., amount of actual annual SNAP sales that have been purchased from the store). If your store is new, please estimate this amount.



EXHIBIT I. MATERIALS ORDER FORM

Store Name/Chain #: _____ WIC Vendor ID#: _____ Date: _____

Ship to Attention: _____ Phone: _____

Address: _____

City, State, Zip Code: _____

Email: _____

Item Requested	Amount Requested*
Food List and Shopping Guide- English	
Food List and Shopping Guide- Spanish	
Retailer Guide to eWIC	
eWIC Accepted Here Window Cling/Door Display	
Training Facilitation Guide (tool for Cashier Preparation Training)	
WIC Cashier Training Video (<i>WIC: Simplified</i>)- DVD	
Post Test and Answer Key	
WIC Vendor Handbook	

*Number of items returned is based on availability and may be different than requested.

To order these materials:

Phone: Call COWIC at (303) 692-2400

Fax: (ATTN: Benefit Delivery Unit) at (303) 756-9926

Email: cdphe_askwic@state.co.us

Mail to: CDPHE/WIC Benefit Delivery Unit
PSD-WIC-7420
4300 Cherry Creek Drive South
Denver, CO 80246-1530

Go on-line to www.ColoradoWIC.gov for all the latest updates, information and materials.

EXHIBIT J. COLORADO WIC PROGRAM VENDOR TRAINING GUIDE

MESSAGE TO THE STORE TRAINER:

- Thank you for facilitating WIC training at your store! This guide suggests main steps and topics to cover in your training session.
- **Training Goals?** After the training, store staff will be prepared to successfully ring up eWIC purchases, be familiar with resources (like the Food List and Shopping Guide and the receipt), and assist WIC shoppers with items that are not ringing up as expected. It is intended to make WIC transactions easier for both cashiers and customers.
- **Who?** Please provide training to each of your cashiers as well as bookkeepers, managers, trainers and other store staff that deal with WIC purchases and/or maintain stock of WIC foods. Ensure current employees are trained, as well as newly hired employees prior to working independently on registers.
- **When?** Allow about 30 minutes to one hour to go through the training steps and watch the video (add about 10 minutes when giving the post-test).
- **Share?** Questions are used to introduce training topics and are highlighted in this guide. Encourage questions and information sharing among the group. If a question comes up that is not answered, contact your local WIC clinic or Colorado WIC at cdphe_cowicstores@state.co.us.
- **Signatures?** Have each employee that completes the training sign the *Training Documentation for WIC Vendors* form. Place the completed training form in your file for WIC documents. Continue to train new cashiers as they are hired. When visiting your store to conduct monitoring visits, WIC will ask for this completed form to ensure that staff has completed WIC training.
- **WIC Leaders?** Make sure that the store has several WIC leaders/trainers. These store employees can assist new cashiers get familiar with WIC transactions on your store's unique cash register point-of-sale (POS) system. They can also keep the *WIC Manual* up-to-date and act as resources for others.
- **Materials?** Please take these materials to the training session:
 - WIC Store Training Video: "*WIC: Simplified.*"
 - Food List and Shopping Guide.
 - Retailer Guide to eWIC.
 - Colorado WIC Program Training Documentation for WIC Vendors.
 - Post-Test (one per person) and Answer Key (optional).
 - Various food items to use as examples of WIC-approved and non WIC-approved food items.
 - Vendor Handbook (optional) and review how the electronic version can be accessed.



STEP 1: BENEFITS OF WIC

What are the main benefits of WIC?

Please discuss the WIC Program and the benefits of WIC. Cashiers need to know they make a difference in the health of Colorado kids!

- WIC is a Special Supplemental Nutrition Program for **W**omen, **I**nfants and **C**hildren. The four (4) eligibility requirements for the Colorado WIC Program are:
 - Women who are pregnant, postpartum or breastfeeding.
 - Infants or children under age 5.
 - Meet income guidelines.
 - Have nutritional risk and are a Colorado resident.
- The WIC Program helps provide nutritious foods, breastfeeding support, healthcare referrals and nutrition education.
- There are more than 90,000 WIC participants served each month in Colorado.
- Colorado WIC stores play a key role in the success of the WIC Program. Vendors help Colorado families improve their nutrition by providing healthy foods and a welcoming shopping experience.
- Healthier Children and Families with Healthier Lifestyles.
- Dollars to Your Store and Community: Colorado WIC sales add up to more than \$82 million dollars a year, which averages out to over \$180,000 per store!



STEP 2: TRAINING VIDEO

Watch and discuss the WIC vendor training video: "WIC: Simplified."

STEP 3: RINGING UP WITH EWIC

Handling WIC transactions incorrectly can cost the store money and may result in violations for the store. Here are some other helpful tips for processing WIC transactions:



- Treat WIC customers as you would treat any other customer. Please treat WIC customers with respect, dignity and friendly service.
- Always offer any printed mid-transaction receipt to WIC customers.
- Do **not** give WIC customers cash back for any eWIC card transaction.
- Do **not** accept returns on foods purchased from WIC, unless the food is damaged or spoiled. Damaged or spoiled food can be replaced with the same item, same size.

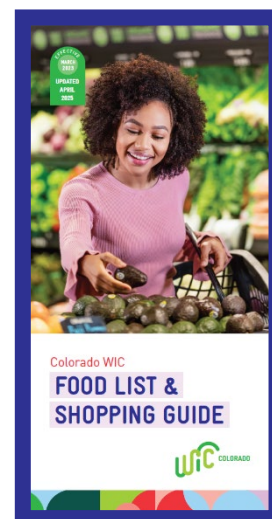
What are the main steps in ringing up an eWIC purchase?

Ring up a WIC shopper's groceries can look different depending on the store's cash register POS system. However, there are some main steps in an eWIC purchase that are similar across the state:

Main Steps in an eWIC Purchase

- **Swipe:** The shopper swipes their eWIC card and enters their PIN to link the purchase to their food balance. Never ask for a second form of identification for a WIC purchase.

- **Food:** The POS system determines if a food is WIC approved and available for the shopper. The system will either deny or allow an item. Cashiers cannot perform overrides. Reference the most current Food List and Shopping Guide to assist customers with their choices.
- **Approval:** The shopper is given the chance to approve or reject the WIC purchase.
- **Apply Other Payments:** If the shopper is using multiple forms of payment (cash, credit, SNAP), the eWIC card needs to be the first form of payment. After the eWIC card, you can then apply other methods of payment (cash, credit, SNAP) if the shopper is buying items that are not WIC approved. Coupons, loyalty cards and other promotions must be allowed with eWIC purchases.
- **Receipt:** Receipts are important! Give the WIC customer a receipt. The receipt shows them what was purchased by WIC and what items remain in their WIC balance.
- **Note:** More details can be found in the handy Retailer Guide to eWIC, which can be kept at each register, and the Vendor Handbook.



Who shows cashiers how to ring up an eWIC purchase on our specific cash register POS?

Grocery stores use a variety of cash register POS systems. Your store manager is responsible for showing you how to successfully ring up WIC purchases on your store's cash register POS.

What if an item does not ring up as WIC?

If items are not going through as expected, try these quick steps to assist the customer to find out why not.

- **Not WIC Approved:** Reference the Colorado WIC Food List and Shopping Guide and check for words like "peanut butter spread" or "2% fat" on the label.
- **Quantity Not Available:** Help the shopper to check their food balance on their receipt for exact amounts and sizes of items left in their food balance. The shopper may be purchasing more than available or a different size. For example, a box of cereal is 14 ounces when their receipt shows that only 12 ounces is left in their WIC balance.
- The customer can then choose a WIC approved item in its place, void the item or pay for the item with another form of payment.

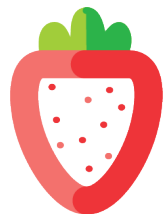
Can WIC purchases be voided and put back on the card?

After an eWIC purchase has been approved by the customer and is complete, cashiers cannot void the WIC purchase and put WIC items back into the WIC account. Please note: If items do not ring up as expected, cashiers can and should offer to void any *non-WIC* items the WIC shopper does not wish to purchase—as they do for other customers.

What should a cashier do if "Invalid PIN" shows on the display screen?

Ask the customer to re-enter their four-digit PIN. If they forgot their PIN, they can call the customer service number on the back of the card to change the PIN. The account will lock until midnight that night if the customer enters an incorrect PIN four times.





Can the shopper buy additional fruits and vegetables?

Yes, the WIC shopper can buy more or less produce than the amount in their eWIC balance. For example, if \$8 is available in the WIC food balance, the shopper can purchase less than the \$8 (and buy the remaining amount at a later time) or they can purchase more than the \$8 and pay the additional amount with another form of payment.

STEP 4: WIC ALLOWED AND NON-ALLOWED FOODS

How do families know what they can buy with eWIC?

WIC families have several options to find their food balance:

- **Receipt:** Remaining WIC food items are printed on the bottom of store receipts.
- **The WIC Shopping App:** With a smartphone, WIC families have the option to register their eWIC cards and see their remaining WIC food balance and scan food items to see if they are WIC approved. WIC Shopping app is also a great optional tool that is available for store staff and the public.
- **Call:** The back of the eWIC card shows a customer service line WIC families can call.
- **Clinic:** A list of the family's food benefits is provided at the WIC clinic when they get their eWIC card.

What is shown in the Colorado WIC Food List and Shopping Guide?

The Colorado WIC Food List and Shopping Guide has lots of information for cashiers and shoppers, including the allowed sizes and brands as well as common varieties that are allowed or not allowed.

STEP 5: MAIN RESOURCES

Does anyone have questions? Share answers and the resources below.

- Colorado WIC Food List and Shopping Guide.
- Customer Receipts.
- Retailer Guide to eWIC.
- Your Local WIC Agency Retailer Coordinator (LARC).
- Your Store Manager and Training Coordinator.
- Colorado WIC Vendor Handbook.
- Colorado WIC Program.
- WIC's World Newsletter.
- Our Website: ColoradoWIC.gov.

STEP 6: POST-TRAINING TEST (OPTIONAL)

An optional post-test is available and encouraged. It is a great way to confirm that the cashiers are feeling prepared and confident. The goal is that cashiers get at least 80% of the questions correct. A fun and effective method is to ask the training participants to individually complete the test and then go over the answers as a group.

STEP 7: TRAINING FORM

Make sure everyone who sees the video and attends training signs off on the "Training Documentation for WIC Vendors" form. Then as new staff members are trained, they should add their names. The manager is responsible to ensure that all staff that work with WIC receive training.

Please note: Please keep the completed WIC training form in your WIC manual.

EXHIBIT K. COLORADO WIC VENDOR TRAINING POST TEST

Name: _____ Date: _____

Store Name: _____

PART 1: CIRCLE THE BEST ANSWER

1. What resources are available to stores and cashiers to assist WIC customers?

- a. The Colorado Food List and Shopping Guide brochure
- b. A WIC customer's transaction receipt and/or mid-transaction receipt
- c. Contacting their local WIC clinic
- d. Offering to void an item that is not ringing up as WIC
- e. All of the above

2. Some reasons an item might not ring up for eWIC are:

- a. The product UPC/PLU is not in the State's Approved Product List (APL).
- b. The customer does not have the benefits.
- c. The customer has the benefits, but not enough of the benefit to make the purchase.
- d. The item is not a WIC-approved food.
- e. All of the above are correct.

3. If you complete a full eWIC transaction (customer approves, final receipt prints out) and the customer decides they want to return the cheese purchased with their eWIC card, you should:

- a. Return the cheese and put the benefits back onto their card.
- b. Remind them that all WIC sales are final and they cannot return the cheese paid for by WIC, and refer them to their WIC clinic if they have questions.
- c. Return the cheese and give the customer cash for the price of cheese.

4. Who can file a complaint to the Colorado WIC Office?

- a. WIC Family
- b. Store
- c. WIC Clinic
- d. General Public
- e. All of the above

5. If an eWIC balance shows "0.75 JBC Peanut Butter/Beans" available, the customer can use the eWIC card to buy:

- a. Most of a jar of peanut butter. They will have to pay for the remaining $\frac{1}{4}$ of the jar with another form of payment.
- b. 3 cans of beans (1 can of beans equals 0.25 benefits).
- c. Nothing. They cannot buy a fraction of peanut butter or a bag of dry beans, so they will just lose those benefits.
- d. None of the above.

Buying Peanut Butter/Beans.

If your benefits state "peanut butter or beans", you may choose any of the following: one jar/bag/can peanut butter or beans.



Note: 4 cans of beans = 1 jar/bag/can
 1 can of beans=0.25 jar/bag/can.

PART 2: WIC-APPROVED FOODS

Using the Food List and Shopping Guide, mark the WIC-approved foods with a Y in the empty column of the table below. (Y=WIC Approved)

	Organic 100% Whole Wheat Bread		½ Gallon Buttermilk		Grade A Large Brown Eggs
	Parsley		1 Pound Bag of Russet Potatoes		Cream of Wheat in Single-Serving Packets
	Unsweetened frozen sliced bananas and strawberries		16 oz. Block of Pepper Jack Cheese		Baby Food Peas in 2-pack 3.5 oz. Plastic Container

PART 3: MARK TRUE (T) OR FALSE (F) IN RESPONSE TO THE FOLLOWING QUESTIONS:

___ If your store is out of the infant formula listed on the customer's benefit list, you may give the shopper a rain check or substitute a different formula.

___ Manufacturer and store coupons and buy-one-get-one offers can be used with eWIC purchases.

___ If the shopper enters their PIN incorrectly four times, the account will be automatically locked until midnight.

___ Stores are required to offer receipts to shoppers for each WIC transaction.

___ WIC shoppers are responsible for their PIN.

___ eWIC card should be the first form of tender during the WIC transaction.

___ WIC customers may pay the difference if they have more fruits and vegetables than the amount listed on their WIC card.

___ The WIC Shopping app allows WIC customers and stores to scan an item to validate if it is a WIC approved item.

PART 4: EWIC TRANSACTIONS AND TROUBLESHOOTING

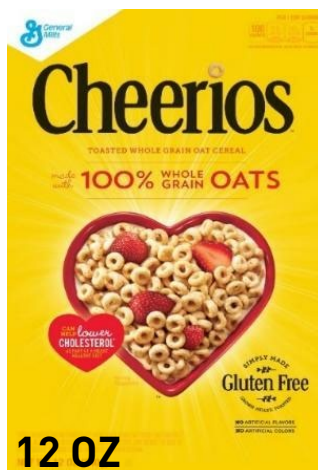
A WIC customer brings the following foods to your register, some of them do not ring up for WIC and the customer wants to know why. To provide assistance:

1. Look at the shopper's receipt and items, mark the foods they cannot buy with their WIC benefits in this transaction. Use the Food List and Shopping Guide to verify products.
2. Help the shopper understand why some things **did not** ring up by explaining why the item was not covered by WIC.

BENEFITS EXPIRE ON MONTH-DAY-YEAR		
QTY	UNITS	DESCRIPTION
1.00	LB	CHEESE - ALL AUTH
0.00	DOZ	EGGS - ALL AUTH
21.50	OZ	BREAKFAST CEREAL
1.00	JBC	PEANUT BUTTER/BEANS
2.00	PKG	INFANT CEREAL
10.00	JAR	INFANT FOOD - FRUIT/VEG
7.00	JAR	INFANT FOOD - MEAT
32.00	OZ	WW BREAD OR WHOLE GRAINS
6.32	\$\$\$	FRUIT AND VEGETABLES
3.50	GAL	FAT REDUCED MILK - ALL AUTH
1.00	QT	YOGURT - ALL AUTH
0.00	BTL	64 OZ BOTTLE JUICE



16oz



\$1.89



\$2.50



EXHIBIT L. COLORADO WIC VENDOR TRAINING POST TEST – ANSWER KEY

PART 1: CIRCLE THE BEST ANSWER

1. What resources are available to stores and cashiers to assist WIC customers?

- a. The Colorado Food List and Shopping Guide brochure.
- b. A WIC customer's transaction receipt and/or mid-transaction receipt.
- c. Contacting their local WIC clinic.
- d. Offering to void an item that is not ringing up as WIC.
- e. All of the above.**

2. Some reasons an item might not ring up for eWIC are:

- a. The product UPC/PLU is not in the State's Approved Product List (APL).
- b. The customer does not have the benefits.
- c. The customer has the benefits, but not enough of the benefit to make the purchase.
- d. The item is not a WIC-approved food.
- e. All of the above are correct.**

3. If you complete a full eWIC transaction (customer approves, final receipt prints out) and the customer decides they want to return the cheese purchased with their eWIC card, you should:

- a. Return the cheese and put the benefits back onto their card.
- b. Remind them that all WIC sales are final and they cannot return the cheese paid for by WIC, and refer them to their WIC clinic if they have questions.**
- c. Return the cheese and give the customer cash for the price of cheese.

4. Who can file a complaint to the Colorado WIC State Office?

- a. WIC Family.
- b. Store.
- c. WIC Clinic.
- d. General Public.
- e. All of the above.**

5. If an eWIC balance shows "0.75 JBC Peanut Butter/Beans" available, the customer can use the eWIC card to buy:

- a. Most of a jar of peanut butter. They will have to pay for the remaining $\frac{1}{4}$ of the jar with another form of payment.
- b. 3 cans of beans (1 can of beans equals 0.25 benefits).**
- c. Nothing. They cannot buy a fraction of peanut butter or a bag of dry beans, so they will just lose those benefits.
- d. None of the above.

Buying Peanut Butter/Beans.

If your benefits state "peanut butter or beans", you may choose any of the following: one jar/bag/can peanut butter or beans.



Note: 4 cans of beans = 1 jar/bag/can
1 can of beans=0.25 jar/bag/can.

PART 2: WIC-APPROVED FOODS

Using the Food List and Shopping Guide, mark the WIC-approved foods with a Y in the empty column of the table below. (Y=WIC Approved)

	Organic 100% Whole Wheat Bread	Y	½ Gallon Buttermilk	Y	Grade A Large Brown Eggs
Y	Parsley	Y	1 Pound Bag of Russet Potatoes	Y	Cream of Wheat in Single-Serving Packets
Y	Unsweetened frozen sliced bananas and strawberries		16 oz. Block of Pepper Jack Cheese		Baby Food Peas in 2-pack 3.5 oz. Plastic Container

PART 3: MARK TRUE (T) OR FALSE (F) IN RESPONSE TO THE FOLLOWING QUESTIONS:

F If your store is out of the infant formula listed on the customer's benefit list, you may give the shopper a rain check or substitute a different formula.

T Manufacturer and store coupons and buy-one-get-one offers can be used with eWIC purchases.

T If the shopper enters their PIN incorrectly four times, the account will be automatically locked until midnight.

T Stores are required to offer receipts to shoppers for each WIC transaction.

T WIC shoppers are responsible for their PIN.

T eWIC card should be the first form of tender during the WIC transaction.

T WIC customers may pay the difference if they have more fruits and vegetables than the amount listed on their WIC card.

T The WIC Shopping app allows WIC customers and stores to scan an item to validate if it is a WIC-approved item.

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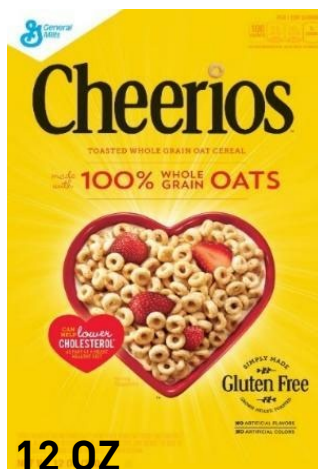
A WIC customer brings the following foods to your register, some of them do not ring up for WIC and the customer wants to know why. To provide assistance:

1. Looking at the customer's balance report on their receipt, we can see that they do not have enough benefits for the bottle of juice. Their current balance for that benefit is 0.00 as they may have already purchased juice this month.
2. Looking at the customer's balance report on their receipt, we can see that whole milk is not a part of their food package, but reduced fat milk is. We can also see that formula is not a part of their food package and would not be approved.

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Contact us or check out our website (www.ColoradoWIC.gov)
for lots of information on activities, events and resources.

THANK YOU

